

Intact Technology | **Breach Response Guide for Customers**

What to Do

If you suspect a breach—or if a breach has actually occurred—you need to act immediately. When you contact us with respect to a breach event covered under your insurance policy, we will work with you to respond to the breach event, retain service providers and implement the breach event services covered under your policy. Intact Technology has selected a group of service providers who can offer hands-on direction and support as part of a coordinated effort to help you minimize the effects of a data breach event.

In the event of a breach event that is covered by your insurance policy, your notice to Intact Technology sets the response in motion. We will make the appropriate service provider contacts, and these service providers will work with you directly to determine the course of action. Although our claims staff will assist you with this entire process, it is important that you respond in a timely fashion to all requests from service providers engaged to provide consultation, investigation, notification, credit monitoring or any other service that is covered under your policy.

In order to ensure that the appropriate service providers are engaged, and to ensure compliance with your policy, you must notify Intact Insurance immediately about any breach event or suspected breach event. Please do not contact any service providers directly.

Who to Contact

In the event of a breach or suspected breach, you must provide notice to Intact Insurance as soon as practicable. Notice may be provided in the following ways:

Telephone
For the fastest service, claims may be reported via our 24/7 dedicated data breach hotline: **877.512.3737.**

Claims may also be reported through our general claims call center: 877.248.3455.

Online
intactspecialty.com

Email
claims@intactinsurance.com

Fax
866.213.2802

You may contact the manager of Intact Technology's claims team with any questions:

Dana M. Lenahan, Esq.
Vice President,
Technology Claims
312.821.4744
dlenahan@intactinsurance.com

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Breach Service Providers

If a covered breach event occurs, Intact Technology offers you some of the most experienced service providers in the industry.

Breach Consultation Services

If breach consultation services are covered under your policy, these consultative services will be provided through a designated vendor directly to you, tailored to the specific circumstances and needs associated with the breach event.

Data Breach Expenses

If data breach expenses are covered under your policy, we will pay for certain expenses incurred in managing a breach event, such as fees charged by legal counsel regarding how to respond to information loss and costs of a public relations company assisting you in mitigating any material damage to your reputation.

Forensic Expenses

If appropriate, a designated vendor will conduct a forensic examination to help determine the source and magnitude of a breach.

Privacy Incident Management

If privacy incident management services are covered under your policy, these services will be provided by a designated vendor:

Notification Services

The designated vendor will work with you directly with respect to preparing and sending your notification letters.

Call Center

Call centers may be an important aspect of responding to a breach event. When affected individuals receive a notification letter, they may want to speak with someone about the breach event. If recommended, the designated vendor will offer a toll-free telephone line to assist with answering calls from affected individuals related to the breach event.

Credit Monitoring Services

A designated vendor will provide assistance placing fraud alerts on individual credit files with the major credit bureaus to alert potential creditors to notify individuals before extending credit in their names. In addition, a designated vendor will also provide proactive monitoring services which may include providing a credit report, credit monitoring and monitoring of fraud in public records for those whose personal information was disclosed or lost.

About Intact Insurance Specialty Solutions

Throughout the United States, Intact Insurance Specialty Solutions' underwriting companies offer a broad range of specialty insurance products through independent agencies, regional and national brokers, wholesalers and managing general agencies. Each business is managed by an experienced team of specialty insurance professionals focused on a specific customer group or industry segment, and providing distinct products and tailored coverages and services. Targeted solutions include group accident and health; commercial and contract surety; entertainment; environmental; excess property; financial institutions; financial services; inland marine; management liability; ocean marine; public entities; technology; and tuition refund. For further information about U.S. products and services visit: intactspecialty.com.

Intact Insurance Specialty Solutions is the marketing brand for the insurance company subsidiaries of Intact Insurance Group USA LLC, a member of Intact Financial Corporation (TSX: IFC), the largest provider of property and casualty insurance in Canada and a leading specialty insurance carrier in North America. The insurance company subsidiaries of Intact Insurance Group USA LLC include Atlantic Specialty Insurance Company, a New York insurer, Homeland Insurance Company of New York, a New York insurer, Homeland Insurance Company of Delaware, a Delaware insurer, OBI America Insurance Company, a Pennsylvania insurer, OBI National Insurance Company, a Pennsylvania insurer, and The Guarantee Company of North America USA, a Michigan insurer. Each of these insurers maintains its principal place of business at 605 Highway 169 N, Plymouth, MN 55441, except The Guarantee Company of North America USA, which is located at One Towne Square, Southfield, MI 48076. For information about Intact Insurance Specialty Solutions products and services available in Canada, visit: intactspecialty.ca and for information about Intact Financial Corporation, visit: intactfc.com.



Visit intactspecialty.com/technology for more information or contact **David Chavez** at 781.332.7690 or dchavez@intactinsurance.com.

IITE 025 (06/2020)

This material is intended as a general description of certain types of insurance coverages and services. Coverages and availability vary by state; exclusions and deductibles may apply. Please refer to your insurance policy or consult with your independent insurance advisor for specific information about coverages, terms and conditions. Some coverage may be written by a surplus lines insurer through a licensed surplus lines broker. Surplus lines insurers do not generally participate in state guaranty funds and insureds are therefore not protected by such funds.

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IntactTechnology | eRiskHub® Registration

When a breach event occurs, time is of the essence. Having a breach response plan in place with access to the third-party resources you need can help you efficiently and cost-effectively respond to and recover from the breach. Through Intact Technology, you can receive complimentary access to the eRisk Hub® portal, powered by NetDiligence®. eRisk Hub provides tools and resources to help you understand your exposures, establish a response plan and minimize the effects of a breach on your organization.



How to Register

1. Go to www.eriskhub.com/intacttech
2. Complete the New User Registration form in the center of the webpage. Create your own User ID and password, then enter 11367 in the Access Code field.
3. Once you've completed registration, you can log in immediately by entering the User ID and password you just created in the Member Login box in the top right corner of the screen.

Key Features of the eRisk Hub Portal

- **Incident roadmap** – includes suggested steps to take following a network or data breach incident
- **Risk manager tools** – assists you in managing your cyber risk including a self-assessment and state breach notification laws
- **News center** – cyber risk news, security and compliance blogs, security news, risk management events and helpful industry links
- **Learning center** – best-practices articles, white papers and webinars from leading technical and legal practitioners
- **Vendors and experts** – a directory to quickly find information about our designated vendors with expertise in pre- and post-breach disciplines

The eRisk Hub® portal is an effective way to combat cyber losses with minimal, controlled and predictable costs.

For More Information

Contact **David Chavez** at 781-332-7690 or dchavez@intactinsurance.com or visit intactspecialty.com/technology.

About Intact Insurance Specialty Solutions

Throughout the United States, Intact Insurance Specialty Solutions' underwriting companies offer a broad range of specialty insurance products through independent agencies, regional and national brokers, wholesalers and managing general agencies. Each business is managed by an experienced team of specialty insurance professionals focused on a specific customer group or industry segment, and providing distinct products and tailored coverages and services. Targeted solutions include group accident and health; commercial and contract surety; entertainment; environmental; excess property; financial institutions; financial services; inland marine; management liability; ocean marine; public entities; technology; and tuition refund. For further information about U.S. products and services visit intactspecialty.com.

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IITE 027 (01/2021)

This material is intended as a general description of certain types of insurance coverages and services. Coverages and availability vary by state; exclusions and deductibles may apply. Please refer to your insurance policy or consult with your independent insurance advisor for specific information about coverages, terms and conditions. Some coverage may be written by a surplus lines insurer through a licensed surplus lines broker. Surplus lines insurers do not generally participate in state guaranty funds and insureds are therefore not protected by such funds.

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U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – http//www.treas.gov/ofac.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

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Insured Name and Address:

S2 ANALYTICAL SOLUTIONS LLC
625 ELDEN ST STE 200
HERNDON, VA 20170-4738

Policy Number: 760-01-09-53-0005

POLICYHOLDER DISCLOSURE
NOTICE OF TERRORISM INSURANCE COVERAGE

You are hereby notified that under the Terrorism Risk Insurance Act (the Act), as amended, you have a right to purchase insurance coverage for losses resulting from acts of terrorism. *As defined in Section 102(1) of the Act*: The term "act of terrorism" means any act or acts that are certified by the Secretary of the Treasury - in consultation with the Secretary of Homeland Security, and the Attorney General of the United States - to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

YOU SHOULD KNOW THAT WHERE COVERAGE IS PROVIDED BY THIS POLICY FOR LOSSES RESULTING FROM CERTIFIED ACTS OF TERRORISM, SUCH LOSSES MAY BE PARTIALLY REIMBURSED BY THE UNITED STATES GOVERNMENT UNDER A FORMULA ESTABLISHED BY FEDERAL LAW. HOWEVER, YOUR POLICY MAY CONTAIN OTHER EXCLUSIONS WHICH MIGHT AFFECT YOUR COVERAGE, SUCH AS AN EXCLUSION FOR NUCLEAR EVENTS. UNDER THE FORMULA, THE UNITED STATES GOVERNMENT GENERALLY REIMBURSES 80%, BEGINNING ON JANUARY 1, 2020, OF COVERED TERRORISM LOSSES EXCEEDING THE STATUTORILY ESTABLISHED DEDUCTIBLE PAID BY THE INSURANCE COMPANY PROVIDING THE COVERAGE. THE PREMIUM TO BE CHARGED FOR THIS COVERAGE IS PROVIDED BELOW AND DOES NOT INCLUDE ANY CHARGES FOR THE PORTION OF LOSS THAT MAY BE COVERED BY THE FEDERAL GOVERNMENT UNDER THE ACT.

YOU SHOULD ALSO KNOW THAT THE TERRORISM RISK INSURANCE ACT, AS AMENDED, CONTAINS A $100 BILLION CAP THAT LIMITS U.S. GOVERNMENT REIMBURSEMENT AS WELL AS INSURERS' LIABILITY FOR LOSSES RESULTING FROM CERTIFIED ACTS OF TERRORISM WHEN THE AMOUNT OF SUCH LOSSES IN ANY ONE CALENDAR YEAR EXCEEDS $100 BILLION. IF THE AGGREGATE INSURED LOSSES FOR ALL INSURERS EXCEED $100 BILLION, YOUR COVERAGE MAY BE REDUCED.

SELECTION OR REJECTION OF TERRORISM INSURANCE COVERAGE

The prospective premium required for your terrorism coverage is $304.

If you wish to reject this offer of coverage, you should check the box below, sign this notice and send it to your agent. An **exclusion** of terrorism losses, as defined by the Act, will then be made part of your policy.

☐	I hereby reject the offer of terrorism coverage. I understand that I will have no coverage for losses arising from acts of terrorism, as defined in the Act.

If your policy includes Property coverage in one or more of these states: CA, GA, HI, IA, IL, MA, ME, MO, NC, NJ, NY, OR, RI, WA, WI, or WV; the following statement applies:

The terrorism exclusion makes an exception for (and thereby continues your coverage for) property fire losses resulting from an act of terrorism. Therefore, if you reject the offer of terrorism coverage, that rejection does not apply to fire losses resulting from an act of terrorism - the coverage in your policy for such fire losses will continue.

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If such a loss occurs, and is certified under the Act, the loss will be reimbursed by the United States Government under the formula detailed above.

The portion of your policy premium attributable to terrorism (fire only) coverage in all of the states listed above, in which your policy provides Property coverage, $0. This amount is included in your policy premium and cannot be rejected.

If your policy includes Inland Marine coverage in one or more of these states: CA, ME, MO, OR or WI; the following statement applies:

The terrorism exclusion makes an exception for (and thereby continues your coverage for) direct property damage fire losses resulting from an act of terrorism. Therefore, if you reject the offer of terrorism coverage, that rejection does not apply to direct property damage fire losses resulting from an act of terrorism - the coverage in your policy for such fire losses will continue. If such a loss occurs, and is certified under the Act, the loss will be reimbursed by the United States Government under the formula detailed above.

The portion of your policy premium attributable to coverage for direct property damage from fire resulting from terrorism in all of the states listed above, in which your policy provides Inland Marine coverage, is $0. This amount is included in your policy premium and cannot be rejected.

	Atlantic Specialty Insurance Company
Policyholder/Applicant's Signature	Insurance Company
Print Name	Date

If you have any questions about this notice, please contact your agent.

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Insured Name and Address:
S2 ANALYTICAL SOLUTIONS LLC
625 ELDEN ST STE 200
HERNDON, VA 20170-4738

Policy Number: 760-01-09-53-0005

POLICYHOLDER DISCLOSURE
NOTICE OF TERRORISM INSURANCE COVERAGE

Coverage for acts of terrorism is included in your policy. You are hereby notified that the Terrorism Risk Insurance Act (the Act), as amended, defines an act of terrorism in Section 102(1) of the Act: The term "act of terrorism" means any act or acts that are certified by the Secretary of the Treasury - in consultation with the Secretary of Homeland Security, and the Attorney General of the United States - to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

Under your coverage, any losses resulting from certified acts of terrorism may be partially reimbursed by the United States Government under a formula established by the Terrorism Risk Insurance Act, as amended. However, your policy may contain other exclusions which might affect your coverage, such as an exclusion for nuclear events. Under the formula, the United States Government generally reimburses 80%, beginning on January 1, 2020, of covered terrorism losses exceeding the statutorily established deductible paid by the insurance company providing the coverage. The Terrorism Risk Insurance Act, as amended, contains a $100 billion cap that limits U.S. Government reimbursement as well as insurers' liability for losses resulting from certified acts of terrorism when the amount of such losses exceeds $100 billion in any one calendar year. If the aggregate insured losses for all insurers exceed $100 billion, your coverage may be reduced.

The portion of your premium attributable to coverage for acts of terrorism is $304, and does not include any charges for the portion of losses covered by the United States Government under the Act.

You need to take no action with respect to this notice. You will receive a bill for your policy premium which will include the above amount required for your terrorism coverage.

If you have any questions about this notice, please contact your agent.

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Atlantic Specialty Insurance Company

605 Highway 169 North, Suite 800
Plymouth, MN 55441

Important Information To Virginia Policyholders

In the event you need to contact someone about this insurance for any reason please contact your agent. If no agent was involved in the sale of this insurance, or if you have additional questions you may contact the insurance company issuing this insurance at the following address and telephone number:

Atlantic Specialty Insurance Company
Paralegal
605 Highway 169 North, Suite 800
Plymouth, MN 55441

1-781-332-7671

If you have been unable to contact or obtain satisfaction from the company or the agent, you may contact the Virginia State Corporation Commission's Bureau of Insurance at:

State Corporation Commission
Bureau of Insurance
Property and Casualty Division
P.O. Box 1157
Richmond, VA 23218
www.scc.virginia.gov/boi
1-877-310-6560 or 804-371-9185
Fax Number: 804-371-9349

Written correspondence is preferable so that a record of your inquiry is maintained. When contacting your agent, company or the Bureau of Insurance, have your policy number available.

VIRGINIA CLAIMS-MADE POLICY NOTICE

Please read the following notice regarding your Liability Insurance Policy.

You have purchased a claims-made liability insurance policy. Please read this policy carefully to understand your coverage. There are certain circumstances in which you must be provided the opportunity to purchase an extended reporting period for reporting claims. These are explained in your policy. If you have any questions regarding the cost of an extended reporting period or the available options under the extended reporting period, please contact your insurance company or your insurance agent.

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Plymouth, MN 55441

DECLARATIONS
INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE

THIS POLICY CONTAINS CLAIMS-MADE COVERAGE AND ONLY APPLIES TO CLAIMS FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD OR EXTENDED REPORTING PERIOD (IF APPLICABLE). DEFENSE EXPENSES ARE PAYABLE WITHIN THE LIMITS OF INSURANCE AND PAYMENT OF DEFENSE EXPENSES REDUCES AND MAY EXHAUST THE LIMITS OF INSURANCE.

COVERAGE UNDER THIS POLICY IS PROVIDED ONLY FOR THOSE COVERAGES FOR WHICH A LIMIT OF INSURANCE APPEARS BELOW. IF NO LIMIT OF INSURANCE IS SHOWN FOR A COVERAGE, SUCH COVERAGE IS NOT PROVIDED BY THIS POLICY. THE MAXIMUM AGGREGATE LIMIT OF INSURANCE SHOWN BELOW IS THE MOST THE INSURER WILL PAY REGARDLESS OF THE NUMBER OF COVERAGES PURCHASED. ITEMS ON THE DECLARATIONS MAY BE MODIFIED BY ENDORSEMENT.

VARIOUS PROVISIONS IN THIS POLICY RESTRICT COVERAGE. PLEASE READ THE ENTIRE POLICY CAREFULLY TO DETERMINE RIGHTS, DUTIES AND WHAT IS AND IS NOT COVERED.

Policy Number: 760-01-09-53-0005

I. FIRST NAMED INSURED AND ADDRESS

S2 ANALYTICAL SOLUTIONS LLC
625 ELDEN ST STE 200
HERNDON, VA 20170-4738

II. POLICY PERIOD

Effective Date: 12/21/2025 **Expiration Date:** 12/21/2026

12:01 A.M. standard time at the First Named Insured's address for both dates

III. NOTICE INFORMATION

Claims:
Phone 1-877-248-3455
Fax 1-866-213-2802
Email Claims@IntactInsurance.com

Data Breach Hotline: 877-512-3737

IV. LIMITS OF INSURANCE, RETENTIONS AND RETROACTIVE DATES

Maximum Policy Aggregate Limit	$	5,000,000
Combined Liability Limit	$	5,000,000
Combined First-Party Limit	$	0

Atlantic Specialty Insurance Company
605 Highway 169 North, Suite 800
Plymouth, MN 55441

A. LIABILITY COVERAGE

1. Errors or Omissions Liability – Your Products and Your Services

Each Claim Limit:	$ 5,000,000
Aggregate Limit:	$ 5,000,000
Retention:	$ 50,000
Retroactive Date:	07/01/2024

2. Information Risk Liability

Each Claim Limit:	$ 5,000,000
Aggregate Limit:	$ 5,000,000
Retention:	$ 50,000
Retroactive Date:	07/01/2024

3. Communication Liability

Each Claim Limit:	$ 0
Aggregate Limit:	$ 0
Retention:	$ 0
Retroactive Date:	Not Applicable

4. Privacy Regulatory Proceeding, Fines and Consumer Redress Liability

Each Proceeding Defense Limit:	$ 0
Fines and Consumer Redress Limit:	$ 0
Aggregate Limit:	$ 0
Retention:	$ 0
Retroactive Date:	Not Applicable

B. FIRST-PARTY COVERAGE

1. Incident Management Expense

Limit:	$ 0
Retention:	$ 0

2. Information Restoration Expense

Limit:	$ 0
Retention:	$ 0

3. Hardware Replacement Expense

Limit:	$ 0
Retention:	$ 0

4. Extortion Payments

Limit:	$	0
Retention:	$	0

5. Forensic Expense

Limit:	$	0
Retention:	$	0

6. Net Business Income Loss and Extra Expense

Limit:	$	0
Waiting Period:	0	hours

V. PREMIUM

$25,750
+ $304 Information Risk Terrorism Coverage
$26,054.00 Total Premium Due

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605 Highway 169 North, Suite 800
Plymouth, MN 55441

VI. FORMS AND ENDORSEMENTS

IL P 001 01 04	U.S. TREASURY DEPT OFFICE OF FOREIGN ASSETS NOTICE (OFAC)
OBTI PR 001 06 22	INFORMATION TECHNOLOGY SOLUTIONS - COMPLETE DEC
OBTI PR 002 08 15	FORMS AND ENDORSEMENTS (CONTINUED)
OBTI PR 100 06 22	INFORMATION TECHNOLOGY SOLUTIONS - COMPLETE
OBTI PR 100 VA 06 22	VIRGINIA CHANGES
OB TRIA 001 07 17	EXCLUSION OF OTHER ACTS OF TERRORISM COMMITTED OUTSIDE THE U.S.; CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM
PHN 033 IL VA 08 15	VIRGINIA CLAIMS-MADE POLICY NOTICE
VCM PHN VA 001 10 13	IMPORTANT INFORMATION TO VIRGINIA POLICYHOLDERS
OBTI PR 267 06 22	Endorsement 1 - PREVIOUS LIMITS OF INSURANCE AND RETENTION - ERRORS OR OMISSIONS LIABILITY - YOUR PRODUCTS AND YOUR SERVICES
OBTI PR 270 06 22	Endorsement 2 - PREVIOUS MAXIMUM POLICY AGGREGATE LIMIT OR COMBINED LIABILITY LIMIT
OBTI PR 334 03 23	Endorsement 3 - AGGREGATED CYBER EVENT LIMIT, RETENTION & COINSURANCE
OBTI PR 332 06 22	Endorsement 4 - AMEND EXCLUSION S - CRITICAL INFRASTRUCTURE EXCLUSION
OBTI PR 339 09 23	Endorsement 5 - AMEND INSURED VERSUS INSURED EXCLUSION - EXCEPTION FOR ADDITIONAL INSURED CLAIMS AGAINST NAMED INSURED
OBTI PR 340 10 23	Endorsement 6 - AMEND DEFINITION OF DAMAGES
OBTI PR 341 10 23	Endorsement 7 - AMEND CONDITIONS G AND H - GLOBAL DUTY TO DEFEND
OBTI PR 342 01 24	Endorsement 8 - AMEND WAR, STATE-SPONSORED ACTIVITY EXCLUSION - HOSTILE CYBER ACTIVITY (IMPACTED STATE)

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION OF OTHER ACTS OF TERRORISM COMMITTED OUTSIDE THE UNITED STATES; CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE
INFORMATION RISK & RECOVERY™

A. The following is added to **SECTION II – EXCLUSIONS**:

This insurance does not apply to:

TERRORISM

Any injury, damage or expense arising, directly or indirectly, out of an **other act of terrorism** that is committed outside of the United States (including its territories and possessions and Puerto Rico), but within the Coverage Territory. However, this exclusion applies only when one or more of the following are attributed to such act:

1. The total of insured damage to all types of property exceeds $25,000,000 (valued in US dollars). In determining whether the $25,000,000 threshold is exceeded, we will include all insured damage sustained by property of all persons and entities affected by the terrorism and business interruption losses sustained by owners or occupants of the damaged property. For the purpose of this provision, insured damage means damage that is covered by any insurance plus damage that would be covered by any insurance but for the application of any terrorism exclusions; or

2. Fifty or more persons sustain death or serious physical injury. For the purposes of this provision, serious physical injury means:

a. Physical injury that involves a substantial risk of death; or

b. Protracted and obvious physical disfigurement; or

c. Protracted loss of or impairment of the function of a bodily member or organ; or

3. The terrorism involves the use, release or escape of nuclear materials, or directly or indirectly results in nuclear reaction or radiation or radioactive contamination; or

4. The terrorism is carried out by means of the dispersal or application of pathogenic or poisonous biological or chemical materials; or

5. Pathogenic or poisonous biological or chemical materials are released, and it appears that one purpose of the terrorism was to release such materials.

With respect to this exclusion, Paragraphs **1.** and **2.** describe the thresholds used to measure the magnitude of an incident of an **other act of terrorism** and the circumstances in which the threshold will apply for the purpose of determining whether this exclusion will apply to that incident. Paragraph **A.2.** only applies to the Liability Insuring Agreements.

B. The following are added to **SECTION VII - DEFINITIONS**:

Any injury, **damage or expense** means any **damages** or **defense expenses** covered under the **Information Risk Liability Coverage** in Paragraph **A. Liability Insuring Agreements** in **SECTION I – COVERAGES** and any **first-party loss** covered under any First-Party Coverage.

Certified act of terrorism means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a **certified act of terrorism** include the following:

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1. The act resulted in insured losses in excess of $5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act;
2. The act resulted in damage:
   a. Within the United States (including its territories and possessions and Puerto Rico); or
   b. Outside of the United States in the case of:
      (1) An air carrier (as defined in Section 40102 of title 49, United States Code) or United States flag vessel (or a vessel based principally in the United States, on which United States income tax is paid and whose insurance coverage is subject to regulation in the United States), regardless of where the loss occurs; or
      (2) The premises of any United States mission; and
   c. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

Other act of terrorism means a violent act or an act that is dangerous to human life, property or infrastructure that is committed by an individual or individuals and that appears to be part of an effort to coerce a civilian population or to influence the policy or affect the conduct of any government by coercion, and the act is not a **certified act of terrorism**.

Multiple incidents of an **other act of terrorism** which occur within a seventy-two hour period and appear to be carried out in concert or to have a related purpose or common leadership shall be considered to be one incident.

C. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for injury or damage that is otherwise excluded under this policy.

D. If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed $100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds $100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

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Throughout this policy the words "you" and "your" refer to the First Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this policy. The word "insured" means any person or organization qualifying as such under **SECTION III** – **WHO IS AN INSURED**. The words "we," "us" and "our" refer to the company providing this insurance. Other words and phrases that appear in **bold**, other than headings, have special meaning. Refer to **SECTION VII – DEFINITIONS**.

SECTION I – COVERAGES

A Liability Coverage or First-Party Coverage applies only if a Limit of Insurance for such is shown in the Declarations. The amount we will pay for **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** is limited as described in **SECTION IV – LIMITS OF INSURANCE**. No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for in the **Coverages** below or under Paragraphs **H. Defense and Settlement** and **T. Supplementary Payments** of **SECTION VIII – CONDITIONS.**

A. Liability Coverages

1. **Errors or Omissions Liability Coverage – Your Products and Your Services**
   We will pay those sums that the insured becomes legally obligated to pay as **damages** because of an **error or omission** to which this insurance applies if the **error or omission** was committed in the Coverage Territory, on or after the Retroactive Date shown in the Declarations and before the end of the Policy Period shown in the Declarations.

2. **Information Risk Liability Coverage**
   We will pay those sums that the insured becomes legally obligated to pay as **damages** because of an **information risk incident** to which this insurance applies if the **information risk incident** was committed within the Coverage Territory, on or after the Retroactive Date shown in the Declarations and before the end of the Policy Period shown in the Declarations.

3. **Communication Liability Coverage**
   We will pay those sums that the insured becomes legally obligated to pay as **damages** because of a **communication incident** to which this insurance applies if the **communication incident** was committed within the Coverage Territory, on or after the Retroactive Date shown in the Declarations and before the end of the Policy Period shown in the Declarations.

4. **Privacy Regulatory Proceeding, Fines and Consumer Redress Liability Coverage**
   We will pay those sums that the insured becomes legally obligated to pay as:
   a. Privacy regulatory fines; and
   b. Consumer redress funds;
   because of a **privacy regulatory proceeding** to which this insurance applies if the violation of a **privacy regulation** was committed within the Coverage Territory, on or after the Retroactive Date shown in the Declarations and before the end of the Policy Period shown in the Declarations.

Liability Coverages only apply to **claims** or **privacy regulatory proceedings** that are reported to us as required by Paragraph **J. Duties in the Event of a Claim or Proceeding** of **SECTION VIII – CONDITIONS** and first brought or made against the insured during the Policy Period shown in the Declarations or during any applicable Extended Reporting Period, and in accordance with Paragraph **W. When a Claim or Proceeding is Made** of **SECTION VIII – CONDITIONS**. All **related claims or proceedings** are deemed first made or brought as set forth in Paragraph **Q. Related Claims or Proceedings – Liability Coverages**.

If we defend a **claim** or **privacy regulatory proceeding**, we will also pay the **defense expenses** for such **claim** or **privacy regulatory proceeding**.

B. First-Party Coverages

1. **Incident Management Expense**
   We will pay **incident management expense** incurred through a **designated vendor** by or on behalf of the insured because of an **information risk incident** or **extortion**.

2. **Information Restoration Expense**
   We will pay **information restoration expense** incurred through a **designated vendor** by or on behalf of the insured because of an **information risk incident**.

3. **Hardware Replacement Expense**
   We will pay **hardware replacement expense** to the insured for seizure or destruction of hardware by a civil authority of the federal or state government because of an **information risk incident**.

4. **Extortion Payments**
   We will pay **extortion payments** incurred through a **designated vendor** by or on behalf of the insured because of **extortion**.

5. **Forensic Expense**
   We will pay **forensic expense** incurred through a **designated vendor** by or on behalf of the insured because of an **information risk incident**.

6. **Net Business Income Loss and Extra Expense**
   We will pay for the actual **net business income loss** and **extra expense** you sustain during the **period of restoration** because of a **network disruption**.

First Party Coverages only apply to **first-party incidents** that take place in the Coverage Territory, are first discovered during the Policy Period shown in the Declarations and are reported to us as required by Paragraph **I. Duties in the Event of a First-Party Incident** of **SECTION VIII – CONDITIONS**. All **related first-party incidents** are deemed first discovered when the earliest **first-party incident** in such **related first-party incidents** is discovered.

SECTION II – EXCLUSIONS

This insurance does not apply to:

A. Abuse or Molestation
Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving the actual or threatened abuse or molestation by anyone of any person. This exclusion applies regardless of whether the abuse or molestation is alleged to result from the negligent employment, investigation, supervision, reporting or failure to report to the authorities or retention of a person who has engaged in actual or threatened abuse or molestation.

B. Aircraft or Satellite
Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving any aircraft or **satellite**, including any of **your product** or **your services** incorporated in, or used in connection with, aircraft, airports, **satellites** or **satellite** stations.

C. Bodily Injury or Property Damage
1. **Bodily injury**; or
2. Physical injury to tangible property, including all resulting loss of use of that property. Tangible property does not include data or other information that is in electronic form.

Paragraph **1.** of this exclusion does not apply to mental or emotional illness, anguish, injury or distress sustained by an individual because of a covered **information loss** of **personally identifiable information**.

Solely with respect to First-Party Coverage **3**, Paragraph **2.** of this exclusion does not apply to covered **hardware replacement expense**.

D. Contractual Liability
Damages by reason of the assumption of liability in a contract or agreement that was made after the **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation** was committed unless the insured would have been liable for such **damages** in the absence of the contract or agreement.

E. Conversion of Funds
Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving any actual or alleged:
1. Gaining of personal profit or advantage to which an insured is not legally entitled; or
2. Conversion, commingling, defalcation, misappropriation or improper use of funds or other property.

F. Cost Guarantees or Estimates
Costs, expenses, charges or fees that:
1. Exceed an insured's or an agent's guarantees or estimates; or
2. Are misrepresented, not accurately described in an insured's contract or agreement or not accurately calculated.

G. Costs to Comply with Warranties or for Recall, Removal or Withdrawal
Any loss, cost or expense incurred by you or others:
1. To comply with any warranty for **your product** or **your services**;
2. To provide, complete, correct, repair, replace, reproduce, reprint, restore, upgrade, supplement or otherwise improve **your product**, **your services** or **impaired property**;
3. For the recall, removal or withdrawal of **your product**, **your services** or **impaired property** from the market or from use by any person or organization for any reason; or
4. For the adjustment, inspection or disposal of **your product**, **your services** or **impaired property**.

Solely with respect to Liability Coverage **1**, this exclusion does not apply to a covered **claim** by a third party for **damages** because of a covered **error or omission**.

H. ERISA or Similar Act
Any actual or alleged violation of the responsibilities, obligations, or duties imposed by the Employee Retirement Income Security Act of 1974, as amended, or any similar common or statutory law of the United States, Canada or their states, territories or provinces or any other jurisdiction anywhere in the world.

I. Fines and Penalties
Fines, penalties, taxes, sanctions or assessments other than covered **privacy regulatory fines** or **consumer redress funds**.

J. Force Majeure
Loss, however caused, arising out of or in any way involving fire, smoke, explosion, lightning, wind, flood, earthquake, volcanic eruption, tidal wave, landslide, hail or act of God.

K. Government Actions
Any **claim** made or brought by or on behalf of any government agency or governmental authority for any administrative, judicial or regulatory action or order except:
1. A **claim** made or brought by or on behalf of such agency or authority in its capacity as your customer other than any actual or alleged violation of the False Claims Act of 1863, including any amendment of or addition to such law, or any similar laws, statutes, ordinances or regulations; or

2. A covered **privacy regulatory proceeding** or covered **privacy regulatory fines** or **consumer redress funds**.

This exclusion does not apply to covered **hardware replacement expense**.

L. Infringement of Intellectual Property Rights or Laws

Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving any actual or alleged misuse, infringement, inducement to infringe or other misuse or violation of:

1. A patent, process, style of doing business, trade secret or other similar information or property of any type, nature or kind, including any part of a **claim** or **privacy regulatory proceeding** that would otherwise be covered by this policy.
2. Any copyright, trademark, trade name, service mark, service name, trade dress, likeness or other intellectual property rights or laws.

Paragraph **1.** of this exclusion does not apply to a covered **claim** for a covered **information risk incident** involving the misappropriation, misuse, gaining or taking of a confidential and proprietary business trade secret of others with whom you have entered into a written contract or agreement.

Paragraph **2.** of this exclusion does not apply to a covered **claim** for a covered **communication incident**.

M. Insured's Economic Loss

An insured's economic loss, including but not limited to, loss of purchase or sale price, income, profits, share value, good will or damage to reputation.

Solely with respect to First Party Coverage **6**, this exclusion does not apply to covered **net business income loss** and **extra expense**.

N. Insured Versus Insured

Any **claim** made or brought by or on behalf of:

1. Any insured;
2. Any business entity or venture at any time owned, controlled, managed or operated by any insured; or
3. Any parent, affiliate, subsidiary, predecessor, successor or assign of any:
   a. Insured; or
   b. Entity or venture at any time owned, controlled, managed or operated by any insured.

This exclusion does not apply to a covered **claim** for a covered **information risk incident** involving the **personally identifiable information** of an **employee**, former **employee** or any member of a current or former **employee's** immediate family.

O. Intentional Act

Any intentional, dishonest, fraudulent, malicious or criminal act or omission by any insured.

This exclusion does not apply:

1. Unless an admission, final adjudication, arbitration, finding of fact, judgment or plea, including a plea of no contest or *nolo contendre*, establishes that such intentional, dishonest, fraudulent, malicious or criminal act or omission was committed by the insured.
2. To an insured that did not participate in or know about the intentional, dishonest, fraudulent, malicious or criminal act or omission unless such act or omission was committed with your consent or knowledge or the consent or knowledge of any member of the **control group**.

P. Nuclear, Biological, Chemical or Electromagnetic

Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving:

1. The furnishing by an insured of services, products, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any nuclear facility; or

2. The hazardous properties of nuclear, biological or chemical material, electromagnetic field or radiation, electromagnetism, or radio frequency.

Q. Personal and Advertising Injury

Injury, including consequential **bodily injury**, arising out of or in any way involving one or more of the following offenses:

1. False arrest, detention or imprisonment;
2. Malicious prosecution;
3. The wrongful eviction from, wrongful entry into or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;
4. Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, product or services;
5. Oral or written publication, in any manner, of material that violates a person's right of privacy;
6. The use of another's advertising idea in your **advertisement**; or
7. Infringing upon another's copyright, trade dress or slogan in your **advertisement**;

Paragraph **4.** of this exclusion does not apply to the extent the offense constitutes a covered **communication incident**.

Paragraph **5.** of this exclusion does not apply to the extent the offense constitutes a covered **communication incident** or a covered **information loss**.

R. Pollution

1. Actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of **pollutants**.
2. Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving:
   a. A request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, **pollutants**; or
   b. Any alternative dispute resolution, arbitration, demand, investigation or other proceeding by or on behalf of a governmental agency or authority for **damages** because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, **pollutants**.

S. Power, Communications, Data Transmission Systems or Services Interruption

Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving any interruption, outage, surge, brownout, blackout, malfunction, defect or other failure of any power, telephone, telecommunications, wireless communications, internet, satellite or data transmission lines, equipment, facilities, infrastructure, systems or services.

This exclusion does not apply to a failure if the infrastructure responsible for such failure was under your operational control at the time of such failure.

T. Prior Knowledge and Pending Matters

Any **claim**, **privacy regulatory proceeding**, **error or omission**, **information risk incident**, **communication incident**, violation of a **privacy regulation** or **first-party loss**:

1. Arising out of or in any way involving any:
   a. **Circumstance** or **first-party incident** that you or the **control group** knew about or reasonably should have known about before the first date we or one of our affiliates have continuously provided this or similar coverage to you; or
   b. **Related circumstances** or **related first-party incidents** involving any **circumstance** or **first-party incident** described in **1.a.** above;
2. Arising out of or in any way involving any alternative dispute resolution, arbitration, demand, investigation, litigation or other proceeding that occurred before or is pending as of the Effective Date shown in the Declarations;

3. Previously reported to any other insurer, including any **related circumstances**, **related first-party incidents** or **related claims or proceedings**; or
4. That is part of any **related claims or proceedings** brought or made in a policy period preceding this policy.

U. Prize Redemption

1. Actual or attempted redemption or over-redemption of tickets, coupons, prizes or other goods or property in any contest, lottery, sweepstakes, promotion or game of chance; or
2. Actual or alleged violation of any laws regulating these activities.

V. Professional Services

Providing or failing to provide professional services by or on behalf of the insured for others while acting or working as any of the following:

1. Actuary;
2. Accountant;
3. Attorney;
4. Broker, dealer or other financial services representative;
5. Civil or structural engineer or architect;
6. Doctor, nurse, emergency medical personnel, physical or occupational therapist or anyone else providing healthcare services;
7. Insurance or real estate agent;
8. Investment banker;
9. Merger and acquisition professional; or
10. Venture capitalist.

W. Recording and Distribution of Material or Information in Violation of Law

Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving any act or omission that violates or is alleged to violate:

1. The Telephone Consumer Protection Act (TCPA), the CAN-SPAM Act of 2003, the Fair Credit Reporting Act (FCRA), the Fair and Accurate Credit Transaction Act (FACTA), including any amendment of or addition to such laws, statutes, ordinances or regulations and any similar laws, statutes, ordinances or regulations; or
2. Any other federal, state, local or foreign law, statute, ordinance or regulation that addresses, prohibits or limits the printing, dissemination, disposal, collection, recording, sending, transmitting, communication or distribution of material or information, including but not limited to any law, statute, ordinance or regulation pertaining to **collection responsibilities**.

Solely with respect to coverage under Liability Coverage **2**, Paragraph **2.** of this exclusion does not apply to a covered **claim** for the actual or alleged violation of a **privacy regulation** applying to an **information loss** involving **personally identifiable information**.

Solely with respect to coverage under Liability Coverage **4**, Paragraph **2.** of this exclusion does not apply to a covered **privacy regulatory proceeding** for the actual or alleged violation of a **privacy regulation**.

X. Unfavorable Business Conditions

Net business income loss or **extra expense** arising out of or in any way involving unfavorable business conditions.

Y. Violation of Consumer Protection, Unfair Competition and Unfair Trade Practices Laws

Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving any actual or alleged:

1. Statutory or common law unfair competition including antitrust statutes;
2. Tortious or intentional interference with contract, business relations or prospective economic advantage;
3. Violation of any law addressing consumer protection; or

4. Violation of any law addressing trade practices or anti-deceptive practices, statutes prohibiting false advertising, the Lanham Act, 15 U.S.C. § 1051, et seq. or any state statutes prohibiting unfair business practices.

Solely with respect to coverage under Liability Coverage **2**, Paragraphs **3.** and **4.** of this exclusion do not apply to a covered **claim** for the actual or alleged violation of a **privacy regulation** applying to an **information loss** involving **personally identifiable information**.

Solely with respect to coverage under Liability Coverage **4**, Paragraphs **3.** and **4.** of this exclusion do not apply to a covered **privacy regulatory proceeding** for the actual or alleged violation of a **privacy regulation**.

Z. Violation of Securities Laws
Actual or alleged violation or breach of any law relating to the offer, sale, purchase, trading or valuation of securities or relating to a failure to disclose cyber events and cyber risks in securities filings.

AA. War, State-Sponsored Activity
Loss, however caused, arising out of or in any way involving:
1. War, including undeclared war or civil war;
2. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents;
3. Any illegal activity or vandalism either directly or indirectly performed, ordered or sponsored by a government, including any agency, authority or entity of such government; or
4. Insurrection, rebellion, revolution or usurped power.

BB. Wrongful Employment Practice, Discrimination or Harassment
Any actual or alleged employment practice, discrimination, humiliation, harassment or misconduct, including any **claim** based upon an individual's race, creed, color, age, gender, national origin, religion, physical or mental disability or condition, marital status or sexual preference.

SECTION III – WHO IS AN INSURED

A. If you are designated in the Declarations as:
1. An individual, you and your spouse or domestic partner are insureds, but only with respect to the conduct of a business of which you are the sole owner.
2. A partnership or joint venture, you are an insured. Your members, your partners and their spouses or domestic partners are also insureds, but only with respect to the conduct of your business.
3. A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.
4. An organization other than a partnership, joint venture or limited liability company, you are an insured. Your officers and directors are insureds, but only with respect to their duties as your officers or directors. Your stockholders are also insureds, but only with respect to their liability as stockholders.

B. Each of the following is also an insured:
1. Your **employees**, other than your officers (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business.
2. Any independent contractor, who is an individual and with whom you have a written contract or agreement, but only for an **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation** committed:
   a. Within the scope of such independent contractor's duties for you while working at your direction and for your benefit; and
   b. After such contract or agreement is executed.

3. With respect to Liability Coverage **1** only:
   a. Any person or organization that is not otherwise an insured under this policy and that you are required by written contract or agreement to name as an additional insured, but only for covered **errors or omissions** caused by you or others acting on your behalf to provide **your product** or **your services** in connection with that written contract or agreement. No such person or organization is an insured for any **claim** arising out of:
      (1) Their independent acts, errors or omissions; or
      (2) Any act, error or omission committed before that contract or agreement was executed.
   b. The insurance afforded to such person or organization under Paragraph **a.** above:
      (1) Only applies to the extent permitted by law;
      (2) Will not be broader than that which you are required by the contract or agreement to provide for the person or organization; and
      (3) Is excess over any other valid and collectible insurance that is available to the person or organization for a loss we cover under this policy.
4. Any entity that is a **subsidiary** as of the Effective Date shown in the Declarations, unless otherwise excluded. However, coverage as an insured under this provision will not extend to any **subsidiary** acquired or formed on or after the effective date of the first policy of which this policy is part of a series of continuous renewal policies, unless you notified us of the acquisition or formation of such **subsidiary** before the Effective Date shown in the Declarations of this policy.

C. No person or organization is an insured with respect to the conduct of any current or past partnership or joint venture that is not shown as a Named Insured under this policy.

SECTION IV – LIMITS OF INSURANCE

A. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay under this policy regardless of the number of:
1. Insureds;
2. **Claims** made or **privacy regulatory proceedings** brought;
3. Persons or organizations making **claims** or bringing **privacy regulatory proceedings**; or
4. **First-party incidents**.

B. The Maximum Policy Aggregate Limit shown in the Declarations is the most we will pay under this policy for all **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss**. We will have no further obligations under this policy once the Maximum Policy Aggregate Limit is exhausted.

C. Subject to the Maximum Policy Aggregate Limit:
1. The Combined Liability Limit shown in the Declarations is the most we will pay for all **damages**, **defense expenses**, **privacy regulatory fines** and **consumer redress funds** under all Liability Coverages.
2. The Combined First-Party Limit shown in the Declarations is the most we will pay for all **first-party loss** under all First-Party Coverages.

D. Subject to the Combined Liability Limit:
1. The most we will pay for all **damages** and **defense expenses** under each Liability Coverage **1**, **2** or **3** is the Aggregate Limit shown in the Declarations for each such Liability Coverage. Subject to the Aggregate Limit for each Liability Coverage, the Each Claim Limit is the most we will pay for **damages** and **defense expenses** for each **claim** under such Coverage.
2. The most we will pay for all **defense expenses**, **privacy regulatory fines**, **consumer redress funds** under Liability Coverage **4** is the Aggregate Limit shown in the Declarations for Liability Coverage **4**. Subject to the Aggregate Limit for Liability Coverage **4**:
   a. The Each Proceeding Defense Limit shown in the Declarations is the most we will pay for all **defense expenses** for each **privacy regulatory proceeding** under Liability Coverage **4**.
   b. The Privacy Regulatory Fines and Consumer Redress Limit shown in the Declarations is the most we will pay for all **privacy regulatory fines** and **consumer redress funds** under Liability Coverage **4**.

3. For purposes of the Each Claim Limit, all **related claims or proceedings** are deemed a single **claim** or **privacy regulatory proceeding** subject to the same Each Claim Limit.

E. Subject to the Combined First-Party Limit, the most we will pay for all **first-party loss** under each First-Party Coverage is the Limit shown in the Declarations for each such Coverage.

F. If any **related circumstance** results in a **claim**, **privacy regulatory proceeding** or **related claims or proceedings** for which coverage is available under more than one Liability Coverage, we will pay no more than the highest single Each Claim Limit that applies.

G. If the Policy Period shown in the Declarations is more than 12 months at inception, the Limits of Insurance apply separately to each consecutive annual period and to any remaining period of less than 12 months. If we extend the Policy Period after inception for less than 12 months, the Limits of Insurance apply to the entire Policy Period and will not be increased or reinstated.

SECTION V – RETENTIONS

A. The Retentions shown in the Declarations and the rules below fix the amount of **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds**, **first-party loss** or other expenses shown in the Declarations and incurred by, or on behalf of, you or any insured, that you will be responsible for paying. The Retentions do not apply to payments we make under Paragraph **T. Supplementary Payments** of **SECTION VIII – CONDITIONS**.

B. A Retention applies only to the coverages for which an amount is shown in the Declarations. If no amount is shown for the Retention, a Retention does not apply to such Coverage.
1. Each Liability Coverage Retention applies to each **claim** or **privacy regulatory proceeding** under such Liability Coverage.
2. Each First-Party Coverage Retention applies to all **first-party loss** caused by the same **first-party incident**, including all **related first-party incidents**.
3. For purposes of the Each Liability Coverage Retention, all **related claims or proceedings** are deemed a single **claim** or **privacy regulatory proceeding** subject to the same Each Liability Coverage Retention.

C. If more than one Retention applies to a **claim**, **privacy regulatory proceeding**, **related claims or proceedings** or **first-party loss**, or to any combination of the foregoing, you are required to pay only the highest Retention.

D. The Limits of Insurance will not be reduced by the payment of any applicable Retention.

E. You may not transfer or insure your liability for payment of the Retention. We have no obligation to pay any amounts until you have paid in full the applicable Retention shown in the Declarations. We may pay all or part of the Retention to defend an insured against, or effect payment or settlement of, any **claim**, **privacy regulatory proceeding** or **first-party loss**. If we do so, you must promptly reimburse us from your own funds for such part of the Retention amount we have paid.

SECTION VI – EXTENDED REPORTING PERIOD

A. We will provide one or more Extended Reporting Periods, as described below, if:
1. This policy is cancelled or not renewed for any reason other than fraud or nonpayment of premium; or
2. We renew or replace this policy with insurance that:
   a. Has a Retroactive Date later than the date shown in the Declarations of this policy; or
   b. Does not apply to an **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation** on a claims-made basis.

B. Extended Reporting Periods do not apply to any First-Party Coverage, extend the Policy Period shown in the Declarations, increase or reinstate the Limits of Insurance or change the scope of the original terms of

the policy coverage provided. They only apply to **claims** made or **privacy regulatory proceedings** brought during the Extended Reporting Period for **errors or omissions**, **information risk incidents**, **communication incidents** or violations of a **privacy regulation** committed before the end of the Policy Period and on or after the Retroactive Date shown in the Declarations. Once in effect, an Extended Reporting Period may not be cancelled.

C. A Basic Extended Reporting Period is automatically provided without additional charge. This period starts with the end of the Policy Period shown in the Declarations and lasts for 90 days after the end of the Policy Period. The Basic Extended Reporting Period does not apply to any **claim**, or **privacy regulatory proceeding** covered under any subsequent insurance you purchase, or that would be covered but for exhaustion of the amount of insurance applicable to such **claim** or **privacy regulatory proceeding**.

D. A Supplemental Extended Reporting Period is available but only by an endorsement and for an extra charge. You must give us a written request for such endorsement within 90 days after the end of the Policy Period shown in the Declarations. The Supplemental Extended Reporting Period will not go into effect unless you pay the additional premium promptly when due. The additional premium will not exceed 200% of the annual premium for this policy.

SECTION VII – DEFINITIONS

A. **Advertisement** means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:
1. Notices that are published include material placed on the internet or on similar electronic means of communication; and
2. Only that part of a website that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.

B. **Advertising, access and content activities** means:
1. Advertising, broadcasting, publishing or telecasting;
2. Designing or determining content of websites for others; or
3. Providing internet search, access or content services.

C. **Bodily injury**:
1. Means any physical injury, including sickness, disease or pain, sustained by a person.
2. Includes pain and suffering, shock, and mental or emotional distress, anguish or injury.

D. **Circumstance** means an **error or omission**, **information risk incident**, **communication incident**, violation of a **privacy regulation** or **first-party incident** that may reasonably be expected to result in a **claim** or **privacy regulatory proceeding**.

E. **Claim**:
1. Means a:
   a. Written demand, civil suit or proceeding in a court of law or equity, or an arbitration proceeding to which the insured must submit, seeking **damages** or **non-monetary relief**; or
   b. Request to toll or waive a statute of limitations.
2. Includes any other arbitration proceeding or alternative dispute resolution proceeding to which the insured submits with our consent.
3. Does not include a **privacy regulatory proceeding**.

F. **Collection responsibilities** means the gathering, collection, acquisition, use, obtaining, taking, disclosure, sharing, dissemination, or access to or of **personally identifiable information**, including but not limited to allowing any person to assent, consent, opt-in, opt-out or withhold or withdraw assent or consent to such gathering, collection, acquisition, use, obtaining, taking, disclosure, sharing, dissemination, or access to or of their **personally identifiable information**.

G. Communication incident:
1. Means the following, except in your **advertisement**:
   a. Infringement, dilution or violation of any right to a trademark, trade name, service mark, service name, trade dress, title, slogan or logo;
   b. Copyright infringement or plagiarism other than in software, code or script; or
   c. Misappropriation of a name, likeness, or violation of the right of publicity.
2. Includes the following, but only if committed by an insured whose business includes **advertising, access and content activities**, or an insured that conducts business in or on, and hosts, owns or exercises control over, an electronic chat room, bulletin board or similar interactive site on which others may post content:
   a. Libel, slander, product disparagement, trade libel or any other form of defamation; or
   b. Invasion or infringement of the right of privacy, including intrusion upon a person's or organization's right of seclusion or secrecy, except in your **advertisement**.

H. Consumer redress fund means amounts, other than **privacy regulatory fines**, forfeitures, sanctions, taxes or fees, the insured is legally obligated to pay into a fund as equitable relief for consumers because of a **privacy regulatory proceeding**.

I. Control group means the insured's Chief Executive Officer, Chief Financial Officer, Chief Security Officer, Chief Technology Officer, Chief Information Officer, Risk Manager, General Counsel or their equivalents.

J. Corporate information means confidential and proprietary information of others in the insured's or **service provider's** care, custody or control.

K. Credit monitoring services:
1. Means services for monitoring credit, including related remediation services or identity restoration services, provided by a **designated vendor** to any individual who is, or is reasonably believed to be, a victim of an **information loss**.
2. Does not include any services for:
   a. Any individual who does not have a Social Security Number; or
   b. Any individual notified under any foreign law, statute, ordinance or regulation.

L. Damages:
1. Means judgments, settlements or other monetary amounts that an insured is legally obligated to pay on account of a covered **claim**.
2. Does not include:
   a. Amounts awarded as liquidated damages under a contract or agreement that exceed the amount of **damages** for which the insured would have liability in the absence of such contract or agreement;
   b. Amounts owed to you by your customer;
   c. Amounts paid to you by your customer in exchange for **your product** or **your services**;
   d. Any matter uninsurable under applicable law;
   e. **Defense expenses**;
   f. Fines, penalties, taxes, sanctions or assessments;
   g. **Privacy regulatory fines** or **consumer redress funds**;
   h. **First-party loss**;
   i. License, fees or royalties of any kind;
   j. **Non-monetary relief**;
   k. Payment, restitution, return or disgorgement of any fees, profits, commissions, charges, or any funds allegedly wrongfully or unjustly held or obtained; or
   l. Punitive damages or the multiplied portion of any multiplied damage award, unless such damages are insurable under the applicable law most favorable for insurability of punitive damages.

M. Data breach expense:
1. Means reasonable and necessary expenses for:
   a. Public relations efforts within the first six months following an **extortion** or discovery of an **information risk incident** that are provided by a **designated vendor** for the purpose of restoring

the insured's reputation to the extent it has been harmed by such **extortion** or **information risk incident**; and

b. Legal counsel regarding how to respond to the **information risk incident** other than compensation, fees, benefits, overhead or internal charges of any insured.

2. Does not include **forensic expense**.

N. Defense expenses:

1. Means the following costs and expenses, when reasonable and necessary and incurred at our direction or with our prior written consent, to defend or investigate a covered **claim** or **privacy regulatory proceeding** against an insured:

a. Attorney's fees;

b. Expert fees;

c. Court, arbitration and mediation costs; and

d. Such other expenses as we determine are reasonable and necessary to defend the insured.

2. Does not include any **first-party loss**.

O. Denial of service attack means any unauthorized attack on the insured's operating system or the insured's website that successfully corrupts, damages, destroys, deletes or impairs the **insured's network**, except with respect to First Party Coverage **6**. With respect to First Party Coverage **6**, a **denial of service attack** means any unauthorized attack on the insured's operating system or the insured's website that successfully corrupts, damages, destroys, deletes or impairs **your network**.

P. Designated vendor means a vendor selected and approved in writing by us to provide services to the insured.

Q. Employee includes:

1. Full and part-time employees or interns; and

2. Leased and temporary workers provided by an employment contractor or agency under an agreement with you to perform work related to your business;

but only for acts within the scope of their employment by you.

R. Error or omission means any negligent act, error or omission committed by an insured in the course of preparing or providing **your product** or **your services** to a customer or client.

S. Extortion means the actual or attempted obtaining of money or other property from an insured or **service provider** through an actual or threatened **information risk incident**.

T. Extortion payments means payment to someone who commits **extortion** if:

1. The payment is approved by us in writing;

2. The payment is facilitated and negotiated by a **designated vendor;**

3. You, working with the **designated vendor**, take all reasonable steps, and make a good faith effort, to eliminate or reduce the **extortion** demand;

4. You take all reasonable steps, and make a good faith effort, to restore the impacted data;

5. You fully cooperate with us and the **designated vendor** to investigate steps to restore the impacted data;

6. You previously reported the **extortion** to applicable law enforcement or regulatory agencies;

7. You did not notify any person or entity of the existence of the coverage for **extortion**; and

8. The person who commits the **extortion** is not an **employee** or an insured.

U. Extra expense means reasonable and necessary expenses incurred to protect **your network** from further **network disruption** and reduce your **net business income loss**, but only if such expenses would not have been incurred if there had been no **network disruption**.

V. First-party incident means any of the following:

1. An **information risk incident** for which the following are available under this policy:

a. Incident management expense;

b. Information restoration expense;

   c. **Hardware replacement expense**;
   d. **Forensic expense**.
2. **Extortion** for which **extortion payments** are available under this policy.
3. A **network disruption** for which **net business income loss** or **extra expense** are available under this policy.

W. First-party loss means the following losses, expenses or payments:
1. **Incident management expense** incurred through a **designated vendor** for **extortion** or an **information risk incident** under First-Party Coverage **1**.
2. **Information restoration expense** incurred through a **designated vendor** for an **information risk incident** under First-Party Coverage **2**.
3. **Hardware replacement expense** for seizure or destruction of hardware by a civil authority of the federal or state government for an **information risk incident** under First-Party Coverage **3**.
4. **Extortion payments** incurred through a **designated vendor** for **extortion** under First-Party Coverage **4**.
5. **Forensic expense** incurred through a **designated vendor** for an **information risk incident** under First-Party Coverage **5**.
6. **Net business income loss** or **extra expense** for a **network disruption** under First Party Coverage **6**.

First-party loss does not include any **damages**, **privacy regulatory fines**, **consumer redress funds** or **defense expenses**.

X. Forensic expense:
1. Means the reasonable and necessary expenses incurred through a **designated vendor** for forensic analysis of the nature, extent and severity of an **information risk incident** and the number and identities of persons affected.
2. Does not include compensation, fees, benefits, overhead or internal charges of any insured.

Y. Hardware replacement expense:
1. Means the reasonable and necessary expense to replace computer hardware with available property that most closely duplicates the function of the seized or destroyed computer hardware at the time of loss.
2. Does not include media or data of any type.

Z. Impaired property means tangible property, other than **your product** or **your services**, that cannot be used or is less useful because:
1. It incorporates **your product** that is, or **your services** that are, known or thought to be defective, deficient, inadequate or dangerous; or
2. You have failed to fulfill the terms of a contract or agreement;

if such property can be restored to use by the repair, replacement, adjustment or removal of **your product** or **your services** or your fulfilling the terms of the contract or agreement.

AA. Incident management expense:
1. Means the following reasonable and necessary expenses incurred through a **designated vendor**:
   a. **Data breach expense**;
   b. **Information risk expense**; and
   c. **Notification expense**.
2. Does not include compensation, fees, benefits, overhead or internal charges of any insured.

BB. Information loss means an unauthorized or accidental disclosure or loss of:
1. **Corporate information**; or
2. **Personally identifiable information**;

in your or a **service provider's** care, custody or control.

CC. Information restoration expense:
1. Means the following expenses incurred through a **designated vendor**:

a. The reasonable and necessary expense incurred through a **designated vendor** to replace, restore, repair, reproduce, correct, research, complete, adjust, functionally replace, re-collect or re-create data; or
b. The reasonable and necessary expense incurred through a **designated vendor** to determine that data cannot reasonably be replaced, restored, repaired, reproduced, corrected, researched, completed, adjusted, functionally replaced, re-collected or re-created.

2. Does not include:
a. The expense of computer hardware, applications, programs or software;
b. Compensation, fees, benefits, overhead or internal charges of any insured;
c. The cost of updating, upgrading, enhancing, replacing or otherwise improving your data, computer system or any other system to a level beyond that which existed prior to the **information risk incident**;
d. The cost of identifying, removing or remediating computer program errors or vulnerabilities;
e. Expenses incurred in furtherance of the restoration or replacement of data owned by a third party including your customers;
f. Any economic, monetary or market value or any diminution in value of any data, including any trade secret, patent, copyright, trademark, trade dress or other intellectual property;
g. The expense of researching or developing any intellectual property; or
h. The cost of funds, currency, securities, accounts, bills, evidences of debt, money, valuable papers, records, abstracts, deeds, manuscripts or other financial, debt, credit, bond or equity instruments or documents.

DD. Information risk expense means:
1. Credit monitoring services, performed by a **designated vendor** and provided with our consent, but only for one year after the discovery of an **information loss**, unless the **designated vendor** recommends and we agree in writing to a longer period; and
2. When a **designated vendor** reasonably recommends, the creation of a toll-free response line for persons notified of an **information loss**.

EE. Information risk incident means:
1. Information loss; or
2. Network security incident.

FF. Insured's network means any network of computers owned, leased or operated by an insured in support of **your product** or **your services** or any network of computers owned, leased or operated by a **service provider**.

GG. Material change in organization means the First Named Insured:
1. Acquires or forms a **subsidiary** whose annual revenues are more than 10% of the First Named Insured's total annual revenues stated in the application for this policy; or
2. Merges or consolidates with another entity, and the First Named Insured is the surviving entity.

HH. Net business income loss:
1. Means the sum of:
a. Net profit before income taxes that would have been earned, or net loss before income taxes that would have been incurred; and
b. Continuing normal operating expenses incurred, including payroll;
if there had been no **network disruption**, but only with respect to your business operations that are dependent on **your network**.
2. Does not include any income that would likely have been earned as a result of an increase in the volume of business due to favorable business conditions caused by the impact of the **network disruption** on customers or other businesses.

II. Network disruption means an actual and measurable interruption, failure or necessary shutdown of **your network** caused by or resulting from a **security failure**.

JJ. **Network security incident** means:
1. The inability of authorized persons or organizations to access or use the **insured's network**, including a **denial of service attack**;
2. Access or use of the **insured's network** by unauthorized persons, including access or use by persons in a manner that exceeds their authority; or
3. Transmission of a virus or malware by the insured or a **service provider**.

KK. **Non-monetary relief**:
1. Means declaratory, injunctive or other equitable relief.
2. Does not include restitution, consumer redress (including **consumer redress funds**), disgorgement, the cost of complying with any declaratory, injunctive or other equitable relief, or any other form of equitable relief requiring the payment of money.

LL. **Notification expense** means the reasonable and necessary cost or expense incurred by a **designated vendor** for notification to those whose **personally identifiable information** was affected by an **information loss**, including but not limited to a voluntary notification that the **designated vendor** reasonably recommends.

MM. **Period of restoration** means the period of time that:
1. Begins after the end of the **waiting period** following the first interruption, failure or shutdown by a **network disruption**; and
2. Ends on the earlier of:
   a. The date **your network** should reasonably be restored, using reasonable diligence and effort, to substantially the same level of operation as before the **network disruption**; or
   b. Thirty days from the date and time **your network** was first interrupted, failed or shutdown by the **network disruption**.

NN. **Personally identifiable information**:
1. Means:
   a. An individual's first name or first initial and last name in combination with one or more of the following data elements for such individual:
      (1) Social Security Number;
      (2) Driver's license number or non-driver identification card number;
      (3) Account number, credit card number or debit card number in combination with any required security code, access code or password that would permit access to the individual's financial account;
      (4) Information regarding medical history, mental or physical condition, medical treatment or diagnosis by a health care professional;
      (5) Health insurance policy number or subscriber identification number, any unique identifier used by a health insurer to identify the individual or any information in the individual's application and claims history, including any appeals records; or
      (6) Biometric identifiers, including finger prints or retina scan;
   b. A user name or email address in combination with a password or security question and answer that would permit access to an online account; or
   c. Any other non-public personally identifiable information protected under any federal, state, local or foreign law, statute, ordinance or regulation;

   if such information allows an individual to be uniquely and reliably identified or contacted or allows access to the individual's financial or medical record information.
2. Does not include publicly available information that is lawfully made available to the general public from federal, state, local or foreign government records.

OO. **Pollutants** mean any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

PP. **Privacy regulatory fines** means civil fines or civil penalties imposed by a government agency or governmental authority in a **privacy regulatory proceeding**.

QQ. **Privacy regulatory proceeding** means any civil investigative demand or civil, administrative or regulatory proceeding by a government agency or governmental authority because of an alleged violation of a **privacy regulation**.

RR. **Privacy regulation** means any law, statute, ordinance or regulation applying to an **information loss** or **collection responsibilities** involving **personally identifiable information**, including but not limited to the following:

1. Gramm-Leach Bliley Act;
2. Health Information Technology for Economic and Clinical Health Act (HITECH);
3. Health Insurance Portability and Accountability Act (HIPAA);
4. State privacy laws regulating **personally identifiable information**;
5. Section 5(a) of the Federal Trade Commission Act, but solely for alleged unfair or deceptive acts or practices in or affecting commerce in the use of **personally identifiable information**; and
6. The European Union General Data Protection Regulation (GDPR).

SS. **Related circumstance** means any circumstance involving two or more, or any combination of, **errors or omissions**, **extortions**, **information risk incidents**, **communication incidents** or violations of a **privacy regulation**, that have in common any fact, circumstance, situation, event, transaction, cause or series of related facts, circumstances, situations, events, transactions or causes.

TT. **Related claims or proceedings** means any **claims** or **privacy regulatory proceedings** arising out of or in any way involving the same **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation**, or any part of a **related circumstance**.

UU. **Related first-party incidents** means all **first-party incidents** that have in common any fact, circumstance, situation, event, transaction, cause or series of related facts, defects or failure to warn of defects, circumstances, situations, events, transactions or causes.

VV. **Satellite** means an artificial body, including any attached objects or objects intended to be attached, that is designed to be placed in orbit around the earth or another celestial body.

WW. **Security failure** means a failure or violation of the security of **your network**, including that which results in or fails to mitigate:

1. Any access or use of **your network** by unauthorized persons, including access or use by a person in a manner that exceeds their authority;
2. **Denial of service attack;** or
3. Receipt or transmission of a malicious code.

XX. **Service provider**:

1. Means any entity with whom you have entered into a written contract or agreement to provide a service to support **your product** or **your services**, but only for activities within the scope of that contract or agreement that are performed on your behalf.
2. Does not include any entity that provides power, communication services, water or other utility services.

YY. **Subsidiary** means any entity, other than a joint venture or a partnership, that is not listed as a Named Insured and in which the Named Insured maintains more than a 50% or a controlling ownership interest.

ZZ. **Waiting period** means the number of consecutive hours shown in the Declarations that must elapse after the actual and measurable interruption, failure or shutdown caused by or resulting from a **network disruption**.

AAA. **Your network** means any network of computers owned, leased or operated by an insured in support of **your product** or **your services**.

BBB. **Your product**:

1. Means:

a. Any goods or products, including technology products, other than real property, manufactured, sold, handled, distributed or disposed of by:

(1) You;

(2) Others trading under your name; or

(3) A person or organization whose business or assets you have acquired; and

b. Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

2. Includes:

a. Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of **your product**; and

b. The providing of or failure to provide warnings or instructions for the use of **your product**.

CCC. **Your services**:

1. Means:

a. Services or activities performed by you or on your behalf; and

b. Materials, parts or equipment furnished in connection with such work or operations.

2. Includes:

a. Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of **your services**; and

b. The providing of or failure to provide warnings or instructions for the use of **your services**.

SECTION VIII – CONDITIONS

A. Advance Premium

The Premium shown in the Declarations may be an advance premium, in which case this policy is subject to audit and will contain an endorsement that shows when and how we will compute the earned premium.

1. Any advance premium is a deposit premium only. We will determine the final premium based on actual exposures. At the close of each audit period, we will compute the earned premium for that period.

2. The First Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

3. If the earned premium is more than the advance premium, the audit premium is due and payable when we give notice of the audit premium due.

4. If the sum of the advance and audit premium is greater than the earned premium, we will return the excess.

B. Appraisal of Net Business Income Loss

If either us or the First Named Insured disagrees on the amount of **net business income loss** or **extra expense** under First-Party Coverage **6**, either may make a written demand for an appraisal of the amount of **net business income loss** and **extra expense**. If either us or the First Named Insured makes such a demand, each will select a competent and impartial appraiser and notify the other of the appraiser's identity within twenty (20) business days of such demand. The two appraisers will then select a competent and impartial umpire. If the appraisers cannot agree on an umpire, they may request that selection be made by a judge of a court having jurisdiction. The appraisers will determine and state separately the amount of **net business income loss** and **extra expense**. If the appraisers agree on the amount of **net business income loss** and **extra expense**, the amount agreed upon will be binding as to the amount of **net business income loss** and **extra expense**. If the appraisers fail to agree within a reasonable time, they will submit only their differences to the umpire. A written agreement on the amount of **net business income loss** and

extra expense, itemized and signed by any two of the three will be binding as to the amount of **net business income loss** and **extra expense**. Each appraiser will be paid by the party that selected such appraiser, and the compensation of the umpire and other expenses of appraisal will be shared equally. Regardless of this appraisal condition, we retain our right to deny coverage.

C. Bankruptcy

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this policy.

D. Cancellation

1. The First Named Insured may cancel this policy by mailing us written notice stating when, before the expiration date, the cancellation will be effective.

2. We may cancel this policy by mailing written notice to the First Named Insured, stating the reason for and effective date of cancellation:

a. 10 days before the effective date of cancellation for non-payment of premium; or

b. 60 days before the effective date of cancellation for any other reason.

If we have received no premium after 10 days' notice to the First Named Insured, we will cancel this policy as of the Effective Date shown in the Declarations

3. We will send any premium refund due at cancellation. If we cancel this policy, the refund will be pro rata. If the First Named Insured cancels, the refund may be less than pro rata. Cancellation will be effective even if we have not made or offered a refund.

4. If notice of cancellation is mailed, proof of mailing will be sufficient proof of notice.

E. Change in Risk

If, during the Policy Period shown in the Declarations:

1. An insured becomes a member of a new joint venture or a partner in a new partnership, there will be no coverage available under this policy for any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines, consumer redress funds** or **first-party losses** arising out of or in any way involving such joint venture or partnership, unless:

a. The First Named Insured gives us information we request regarding the joint venture or partnership;

b. We agree in writing to provide coverage with respect to the joint venture or partnership and add it as a Named Insured under this policy; and

c. The First Named Insured accepts any terms, conditions, exclusions or limitations, including payment of additional premium, as we, in our sole discretion, require.

2. The First Named Insured undergoes a **material change in organization**:

a. We will deem the newly acquired or formed **subsidiary** or the merged or consolidated entity an insured but only:

(1) For 90 days after the effective date of the **material change in organization**; and

(2) If such **subsidiary** or merged or consolidated entity has no other similar insurance.

b. We will provide no coverage under this policy for the newly acquired or formed **subsidiary** or the merged or consolidated entity beyond 90 days after the effective date of the **material change in organization**, unless:

(1) The First Named Insured gives us information we request regarding the **material change in organization**;

(2) We agree in writing to provide coverage for such **subsidiary** or entity and add it as an insured under this policy; and

(3) The First Named Insured accepts any terms, conditions, exclusions or limitations, including payment of additional premium, as we, in our sole discretion, require.

c. Under Paragraph **a.** or **b.** above, coverage for such **subsidiary** or merged or consolidated entity will apply only for **errors or omissions**, **information risk incidents**, **communication incidents**, violations of **privacy regulations** or **first-party incidents** that first occur after the effective date of the **material change in organization**.

3. The First Named Insured newly acquires or forms a **subsidiary** whose annual revenues are equal to or less than the percentage, stated in the definition of **material change in organization**, of the First Named Insured's total annual revenues, such **subsidiary** will qualify as an insured, but only:
   a. For **errors or omissions**, **information risk incidents**, **communication incidents**, violations of **privacy regulations** or **first-party incidents** that first occur after the effective date of the First Named Insured's acquisition or formation of such **subsidiary**; and
   b. If such **subsidiary** has no other similar insurance.
4. Any of the following events occur:
   a. The First Named Insured is dissolved, sold, acquired by, merged into or consolidated with another entity and the First Named Insured is not the surviving entity; or
   b. A third-party receiver, conservator, trustee, liquidator, rehabilitator or any similar official is appointed for or with respect to the First Named Insured;

   this policy will only apply to an **error or omission**, **information risk incident**, **communication incident**, violation of a **privacy regulation** or **first-party incident** that first occurs before the date of the event under Paragraphs **a.** or **b.** above.
5. Any of the following events occur:
   a. Any entity that qualified as a **subsidiary** at the Effective Date of this policy ceases to qualify as a **subsidiary**;
   b. Any Named Insured, other than the First Named Insured, is dissolved, sold, acquired by, merged into or consolidated with another entity and the Named Insured is not the surviving entity;
   c. The First Named Insured's beneficial or legal ownership interest in any Named Insured becomes less than 50%; or
   d. A third-party receiver, conservator, trustee, liquidator, rehabilitator or any similar official is appointed for or with respect to any Named Insured, other than the First Named Insured;

   then with respect to such Named Insured or **subsidiary**, including any person or organization qualifying as an insured because of such Named Insured or **subsidiary**, this policy will only apply to an **error or omission**, **information risk incident**, **communication incident**, violation of a **privacy regulation** or **first-party incident** that first occurs before the date of the event under Paragraphs **a.**, **b.**, **c.** or **d.** above.

F. Changes to Policy

This policy contains all the agreements between you and us concerning the insurance afforded. The First Named Insured may, with our consent, make changes in the terms of this policy, including exercising or declining to exercise any Extended Reporting Period. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

G. Coverage Territory

1. This policy applies to an **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation** that takes place anywhere other than a country subject to U.S. economic or trade sanctions. If a **claim** is made or a **privacy regulatory proceeding** is brought outside the United States or its territories or possessions, we will have the right but not the duty to defend, investigate or settle such **claim** or **privacy regulatory proceeding**. If we exercise our right to defend such a **claim** or **privacy regulatory proceeding**, but the jurisdiction does not allow for a defense to be provided by us, then we will instead indemnify you for covered **damages** and **defense expenses**.
2. This policy applies to a **first-party incident** that takes place anywhere other than a country subject to U.S. economic or trade sanctions.
3. If any covered amounts are sustained or incurred in currency other than United States dollars, the amounts will be converted into United States dollars according to the prevailing rate of exchange:
   a. At the time of judgment or settlement for **damages** or final order or imposition of **privacy regulatory fines** or **consumer redress**; or
   b. On the day before we pay any other amounts, including **defense expenses** or **first-party loss**.

H. Defense and Settlement

We have the right and duty to defend any **claim** seeking those **damages**, or any **privacy regulatory proceeding** seeking those **privacy regulatory fines** or **consumer redress funds**, to which this insurance applies. We have the right, but not the duty, to defend any **claim** or **privacy regulatory proceeding**

seeking **non-monetary relief** because of an **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation**. We may, at our discretion, investigate any **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation** and settle any resulting **claim** or **privacy regulatory proceeding**. But:

1. The amount we will pay for **damages**, **privacy regulatory fines**, **consumer redress funds** and **defense expenses** is limited as described in **SECTION IV – LIMITS OF INSURANCE**; and
2. Our right and duty to defend ends when we have used up:
   a. The applicable Limit of Insurance in the payment of **damages** or **defense expenses** under Liability Coverages **1**, **2** or **3**; or
   b. The applicable Limit of Insurance in the payment of **privacy regulatory fines**, **consumer redress funds** or **defense expenses** under Liability Coverage **4**.

I. Duties in the Event of a First-Party Incident – First-Party Coverages

1. You must give us written notice of any **first-party incident** as soon as reasonably practicable, but no later than 30 days after any member of the **control group** first discovers or is made aware of such **first-party incident**.
2. You and any other involved insured must:
   a. Notify the police if the **first-party incident** involves a violation or possible violation of the law;
   b. Submit to examination under oath at our request, while not in the presence of any other insured, and give us a signed statement of your answers;
   c. As often as reasonably requested, permit us to inspect the **insured's network** and examine and make copies of your books and records;
   d. Send us a detailed, signed sworn proof of loss as soon as reasonably practicable after our request; and
   e. Cooperate with us in the investigation and settlement of the **first-party incident**.
3. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, without our consent.
4. Additionally, with respect to First Party Coverage **6**, you must:
   a. Take all reasonable steps to protect **your network** from further **network disruption**;
   b. Keep a record of your expenses necessary to protect **your network** for consideration in the settlement of the claim; and
   c. If feasible, set aside, in the best possible order for examination, all or any part of **your network** involved in the **network disruption**.

J. Duties in the Event of a Claim or Proceeding – Liability Coverages

1. You must give us written notice of any **claim** or **privacy regulatory proceeding** as soon as reasonably practicable after any member of the **control group** first becomes aware of the **claim** or **privacy regulatory proceeding**.
2. You and any other involved insured must:
   a. Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the **claim** or **privacy regulatory proceeding**;
   b. Authorize us to obtain records and other information;
   c. Cooperate with us in the investigation, defense or settlement of the **claim** or **privacy regulatory proceeding**; and
   d. Assist us, upon our request, in the enforcement of any right against any person or organization that may be liable to the insured because of injury or damage to which this insurance may also apply.
3. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, without our consent.

K. Duties in the Event of a Potential Claim or Proceeding – Liability Coverages

If, during the Policy Period shown in the Declarations, a member of the **control group** first becomes aware of a **circumstance**, and written notice of such **circumstance** is provided to us as soon as reasonably practicable stating the reasons for anticipating a **claim** or **privacy regulatory proceeding**, and describing:

1. The specific **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation**;
2. The dates and individuals involved;

3. The identities of anticipated or possible claimants; and
4. The circumstances by which you first became aware of the **circumstance**;

then any covered **claim** or **privacy regulatory proceeding** subsequently made or brought against you and arising out of such **circumstance** will be deemed made when the **control group** first became aware of such **circumstance**.

L. Economic and Trade Sanctions

In accordance with laws and regulations of the United States concerning economic and trade embargoes, this policy does not provide coverage if any term or condition violates any laws or regulations of the United States concerning economic and trade embargoes, including but not limited to:

1. Any insured, or any person or entity claiming the benefits of an insured, who is or becomes a Specially Designated National or Blocked Person or who is otherwise subject to U.S. economic or trade sanctions;
2. Any **claim** made or **privacy regulatory proceeding** brought:
   a. In a Sanctioned Country or by a Sanctioned Country Government, where any action in connection with such **claim** or **privacy regulatory proceeding** is prohibited by U.S. economic or trade sanctions; or
   b. By any Specially Designated National or Blocked Person or any person or entity who is otherwise subject to U.S. economic or trade sanctions;
3. Property that is located in a Sanctioned Country or that is owned by, rented to or in the care, custody or control of a Sanctioned Country Government, where any activities related to such property are prohibited by U.S. economic or trade sanctions; or
4. Property that is owned by, rented to or in the care, custody or control of a Specially Designated National or Blocked Person, or any person or entity that is otherwise subject to U.S. economic or trade sanctions.

A Specially Designated National or Blocked Person is any person or entity that is on the list of Specially Designated Nationals and Blocked Persons issued by the U.S. Treasury Department's Office of Foreign Asset Control (OFAC) as it may be from time to time amended.

A Sanctioned Country is a country that is the subject of trade or economic embargoes imposed by the laws or regulations of the United States of America.

M. Legal Action Against Us

No person or organization has a right under this policy:

1. To join us as a party or otherwise bring us into a **claim** or **privacy regulatory proceeding** against an insured; or
2. To sue us under this policy unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured obtained after an actual trial, but we will not be liable for **damages** that are not payable under the this policy or are in excess of the applicable Limit of Insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

N. Notices and Premiums

The First Named Insured will act on behalf of all insureds for any notice given or received under this policy, paying additional premium, or accepting return premium.

O. Non-Stacking of Coverage Under Multiple Policies or Coverage Forms

If there is coverage under multiple policies or coverage forms that we or any of our affiliates have issued to an insured for any:

1. **Claims** or **privacy regulatory proceedings** or **damages**, **privacy regulatory fines**, **consumer redress funds** or **defense expenses** arising out of them; or
2. **First-party incidents** and any **first-party loss** arising out of such incidents;

we will pay no more than the maximum Limit of Insurance available for a single policy period under the single coverage within a single policy or coverage form that provides the greatest applicable Limit of

Insurance. This condition does not apply to any policy or coverage form written specifically by us or one of our affiliates as excess of this insurance.

P. Other Insurance

This insurance is excess over any other valid and collectible insurance that is available to the insured for a loss we cover under this policy, unless such other insurance is written specifically as excess of this insurance.

Q. Related Claims or Proceedings – Liability Coverages

All **related claims or proceedings**, whenever made or brought, are deemed a single **claim** or **privacy regulatory proceeding** first made or brought at the earlier of:

1. When the first of all such **related claims or proceedings** was made or brought; or
2. When the earliest of all such **related claims or proceedings** is deemed made or brought under Paragraph **W. When a Claim or Proceeding is Made** below.

R. Representations and Incorporation of Application

1. By accepting this policy, you and all insureds represent and agree that the application and any statements or representations contained in any application or any other materials submitted for this policy:
   - **a.** Are accurate and complete regardless of whether we provided such application or materials;
   - **b.** Form the basis for, and have been relied upon by us in issuing, this policy; and
   - **c.** Are incorporated into and form a part of this policy.
2. We will not impute to another insured knowledge of any material statement, misrepresentation or omission in the application or other materials submitted for this policy unless such material statement, misrepresentation or omission is:
   - **a.** Known to the person or persons who signed the application; or
   - **b.** Made by or with the consent or knowledge of any member of the **control group**.
3. This policy is void with respect to any insured that knew of any material misstatement, misrepresentation or omission in the application or other materials submitted for this policy.

S. Risk Management

We may provide or make available risk management services in connection with this policy for the purpose of managing and reducing risks covered by the policy. We have no obligation to provide or make available any services, however, and any such services may cease or change at any time. If you agree to accept such services, they shall be provided by an independent provider and shall be documented in a written agreement between you and the provider. We are not and will not be a party to that written agreement and do not make any representation or warranty as to the services provided.

T. Supplementary Payments – Liability Coverages

We will pay, with respect to any **claim** or **privacy regulatory proceeding** we investigate, settle or defend:

1. All expenses, other than **defense expenses**, that we incur.
2. The cost of appeal bonds for a covered **claim** or **privacy regulatory proceeding** if we exercise our right to bring that appeal.
3. Prejudgment interest awarded against the insured on that part of any judgment we pay. If we make an offer to pay the applicable Limit of Insurance, we will not pay prejudgment interest based on that period of time after the offer.
4. All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay or deposited in court that part of the judgment that is within the applicable Limits of Insurance.
5. Up to $1,000 per day in actual lost earnings incurred by the insured due to time taken off from work at our request and in support of our investigation or defense of a **claim** or **privacy regulatory proceeding**, subject to a maximum amount of $25,000 per **claim** or **privacy regulatory proceeding**.

These payments will not reduce the Limits of Insurance.

U. Transfer of Rights and Duties Under This Policy

Your rights and duties under this policy may not be transferred without our written consent except in case of death of an individual Named Insured. If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative.

V. Transfer of Rights of Recovery Against Others to Us

If the insured has rights to recover all or part of any payment we have made under this policy, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring or make a **claim** or transfer those rights to us and help us enforce them. Any recovery will be paid first to us until all amounts we have paid under this policy have been reimbursed. The insured expressly waives the right to be made whole by any such recovery.

W. When a Claim or Proceeding is Made – Liability Coverages

A **claim** or a **privacy regulatory proceeding** is deemed to have been made at the earlier of the following times:

1. When notice of such **claim** or **privacy regulatory proceeding** is received by any member of the **control group** or by us, whichever comes first; or
2. When the **control group** first became aware of a **circumstance** if you gave us written notice in accordance with Paragraphs **I. Duties in the Event of a First-Party Incident** or **K. Duties in the Event of a Potential Claim or Proceeding** above.

X. When We Do Not Renew

We are not required to renew this policy upon expiration. If we decide not to renew this policy, we will mail or deliver to the First Named Insured shown in the Declarations written notice of the nonrenewal not less than 60 days before the expiration date. If notice is mailed, proof of mailing will be sufficient proof of notice.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PREVIOUS LIMITS OF INSURANCE AND RETENTION – ERRORS OR OMISSIONS LIABILITY – YOUR PRODUCTS AND YOUR SERVICES

This endorsement modifies insurance provided under the following:

INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE

Endorsement Number: 1
Endorsement Effective Date: 12/21/2025

SCHEDULE

1. Errors or Omissions Liability – Your Products and Your Services

Previous Each Claim or Suit Limit:	$	1,000,000
Previous Aggregate Limit:	$	1,000,000
Previous Retention:	$	25,000
Retroactive Date:		8/20/2019

A. The following is added to Paragraph **1. Errors or Omissions Liability Coverage – Your Products and Your Services** in Paragraph **A. Liability Coverages** of **SECTION I – COVERAGES**:

Subject to the Previous Limits of Insurance and Previous Retentions shown in the Schedule above, we will pay those sums that the insured becomes legally obligated to pay as **damages** because of an **error or omission** to which this insurance applies if the **error or omission** was committed within the Coverage Territory, before the Retroactive Date shown in the Declarations, on or after the applicable Retroactive Date shown in the Schedule above and before the subsequent Retroactive Date, if any, shown in the Schedule above.

An **error or omission** that is part of any **related circumstances** is deemed committed at the time the first **circumstance** from those **related circumstances** was committed.

B. The following is added to Paragraph **D.1.** of **SECTION IV – LIMITS OF INSURANCE**:

Previous Errors Or Omissions Liability Limits
However, subject to the Combined Liability Limit, the Previous Aggregate Error or Omission Limit shown in the Schedule above applies to and is the most we will pay under Liability Coverage **1** Errors or Omissions for all **damages** and **defense expenses** for all **claims** arising out of all **errors or omissions** first committed before the Retroactive Date shown in the Declarations, on or after the applicable Retroactive Date shown in the Schedule above and before the subsequent Retroactive Date, if any, shown in the Schedule above. Subject to the Previous Aggregate Error Or Omission Liability Limit, the Previous Each Claim Error Or Omission Liability Limit shown in the Schedule above applies to and is the most we will pay under Liability Coverage **1** Errors or Omissions for each **claim** arising out of an **error or omission** first committed before the Retroactive Date shown in the Declarations, on or after the applicable Retroactive Date shown in the Schedule above and before the subsequent Retroactive Date, if any, shown in the Schedule above.

All **related claims or proceedings** are subject to the single Each Claim Limit or Previous Each Claim Limit that applies to the first **error or omission** that was committed.

The Previous Aggregate Error or Omission Limit shown in the Schedule above is subject to, part of and not

in addition to the Aggregate Error or Omission Limit shown in the Declarations. The Previous Each Claim Error Or Omission Liability Limit shown in the Schedule above is subject to, part of and not in addition to the Each Claim Limit for Error or Omission Liability shown in the Declarations. Any amounts we pay under Liability Coverage **1** will reduce, and may exhaust, both the Limits shown in the Schedule above and the Limits shown in the Declarations.

C. The following is added to Paragraph **B.1.** of **SECTION V – RETENTIONS**:

Previous Errors or Omissions Retention
The Previous Retention shown in the Schedule above applies to each **claim**, including all **related claims or proceedings**, arising out of an **error or omission** first committed before the Retroactive Date shown in the Declarations, on or after the applicable Retroactive Date shown in the Schedule above and before the subsequent Retroactive Date, if any, shown in the Schedule above.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PREVIOUS MAXIMUM POLICY AGGREGATE LIMIT OR COMBINED LIABILITY LIMIT

This endorsement modifies insurance provided under the following:

INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE

Endorsement Number: 2
Endorsement Effective Date: 12/21/2025

SCHEDULE

Previous Maximum Policy Aggregate Limit	Retroactive Date
$ 1,000,000	8/20/2019

Previous Combined Liability Limit	Retroactive Date
$ 1,000,000	8/20/2019

A. The following is added to Paragraph **B.** of **SECTION IV – LIMITS OF INSURANCE**:

However, the Previous Maximum Policy Aggregate Limit shown in the Schedule above applies to and is the most we will pay for all **first-party loss** and **damages**, **defense expenses**, **privacy regulatory fines** and **consumer redress funds** arising out of **errors or omissions**, **information risk incidents**, **communication incidents** or violations of **privacy regulations** first committed before the Retroactive Date shown in the Declarations, on or after the applicable Retroactive Date shown in the Schedule above and before the subsequent Retroactive Date, if any, shown in the Schedule above.

All **related circumstances** are deemed to have been committed at the time the first **circumstance** from those **related circumstances** was committed.

The Previous Maximum Policy Aggregate Limit is subject to, part of and not in addition to the Maximum Policy Aggregate Limit. Any amounts we pay under this policy will reduce, and may exhaust, both the Limits shown in the Schedule above and the Limits shown in the Declarations.

B. The following is added to Paragraph **C.1.** of **SECTION IV – LIMITS OF INSURANCE**:

However, subject to the Previous Maximum Policy Aggregate Limit, the Previous Combined Liability Limit is the most we will pay under all Liability Coverages for all **damages**, **defense expenses**, **privacy regulatory fines** and **consumer redress funds** arising out of **errors or omissions**, **information risk incidents**, **communication incidents** or violations of **privacy regulations** first committed before the Retroactive Date shown in the Declarations, on or after the applicable Retroactive Date shown in the Schedule and before the subsequent Retroactive Date, if any, shown in the Schedule.

The Previous Combined Liability Limit is subject to, part of and not in addition to the Combined Liability Limit. Any amounts we pay under any Liability Coverage will reduce, and may exhaust, both the Limits shown in the Schedule above and the Limits shown in the Declarations.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AGGREGATED CYBER EVENT LIMIT, RETENTION & COINSURANCE

This endorsement modifies insurance provided under the following:

INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE

Endorsement Number: 3
Endorsement Effective Date: 12/21/2025

SCHEDULE

Aggregated Cyber Event	
Limit	$ 5,000,000
Retention	$ 50,000
Coinsurance	
Other Designated Cloud Vendor(s): Per Schedule on file with Named Insured	
Other Designated Event(s):	

A. The following is added to **SECTION IV – LIMITS OF INSURANCE**:

Aggregated Cyber Event Limit
However, the Aggregated Cyber Event Limit shown in the Schedule above is the most we will pay under this policy for all **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** arising out of or in any way involving any **aggregated cyber event**. The Aggregated Cyber Event Limit applies as a sublimit of any Limit amount shown elsewhere on this policy, including but not limited to the Maximum Policy Aggregate Limit, Combined Liability Limit, Combined First-Party Limit, any First-Party Coverage Limit or any Liability Coverage Aggregate or Each Claim or Each Proceeding Limit. The Aggregated Cyber Event Limit shown in the Schedule above is part of and not in addition to the Limits of Insurance shown in the Declarations.

Any amounts we pay for **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** arising out of or in any way involving any **aggregated cyber event**, including any such payments for **related circumstances**, **related claims or proceedings** and **related first-party incidents**, will reduce, and may exhaust, both the Limits shown in the Declarations and the Aggregated Cyber Event Limit shown in the Schedule above. Once the Aggregated Cyber Event Limit is exhausted, we will have no further obligations under this policy with respect to any **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** arising out of or in any way involving such **aggregated cyber event**.

B. The title of **SECTION V – RETENTIONS** is amended to **SECTION V – RETENTIONS AND COINSURANCE**.

C. The following is added to Paragraph **B.** of **SECTION V – RETENTIONS AND COINSURANCE**:

Aggregated Cyber Event Retention
However, the Aggregated Cyber Event Retention shown in the Schedule above applies to all **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** arising out of or in any way involving any **aggregated cyber event**. The Aggregated Cyber Event Retention applies in place of any other retention shown elsewhere in the policy, including but not limited to any Each Liability Coverage Retention or any Each First-Party Coverage Retention. You are responsible for paying the Aggregated Cyber Event Retention amount before we will make any payments for any **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving an **aggregated cyber event**.

D. The following is added to **SECTION V – RETENTIONS AND COINSURANCE**:

Aggregated Cyber Event Coinsurance
Coverage for **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** arising out of or in any way involving any **aggregated cyber event** is subject to coinsurance. You must pay as coinsurance the Aggregated Cyber Event Coinsurance Percentage shown in the Schedule above for all **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** arising out of or in any way involving any **aggregated cyber event**. We do not have any obligation to pay any **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** arising out of or in any way involving any **aggregated cyber event**, unless you have first paid the Aggregated Cyber Event Retention and, as Coinsurance, the percentage of **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** shown in the Schedule above. The Aggregated Cyber Event Retention and Coinsurance must be borne by you and remain uninsured. We will pay only the amount of **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** that exceeds the applicable Aggregated Cyber Event Retention and Coinsurance Percentage, subject to the Aggregated Cyber Event Limit and the Limits of Insurance shown in the Declarations.

Your payment of Coinsurance does not reduce the Aggregated Cyber Event Limit or the Limits shown in the Declarations. Only the portion of **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** and **first-party loss** paid by us shall reduce the Aggregated Cyber Limit and Limits shown in the Declarations.

E. The following are added to **SECTION VII – DEFINITIONS**:

Aggregated cyber event means any:
1. **Cloud service event**;
2. **Operating system event** that impacts or causes an interruption, disturbance, corruption, impairment, outage, malfunction, defect or failure of:
   a. The **insured's network** or **your network**; and
   b. Computer systems or networks of more than one **unrelated entity**; or
3. **Other designated event**.

For purposes of the Aggregated Cyber Event Limit and Aggregated Cyber Event Retention, all **cloud service events**, **operating system events** or **other designated events** that have in common any fact, circumstance, situation, event, transaction, cause or series of related facts, circumstances, situations, event, transactions or causes, are deemed part of a single **aggregated cyber event**, subject to the same Aggregated Cyber Event Limit and Cyber Event Retention.

Cloud service event means any interruption, disturbance, corruption, impairment, outage, malfunction, defect or failure (or series of related, repeated or continuing interruptions, disturbances, corruptions, impairments, outages, malfunctions, defects or failures) of any **leading cloud vendor's** cloud services that lasts longer than 72 hours.

Leading cloud vendor means Amazon Web Services (AWS), Microsoft Azure, Google Cloud Platform, IBM Cloud, Alibaba Cloud, Salesforce, Oracle Cloud, Tencent Cloud or any other designated cloud service provider shown in the Schedule above, and any entity directly or indirectly controlled by or under common control with a **leading cloud vendor**.

Operating system means any computer system software that manages or administers computer hardware or software resources or provides common services to run programs or applications. **Operating system** includes but is not limited to Apple macOS, Microsoft Windows, Google Android OS, Google Chrome OS, Linux and Apple iOS.

Operating system event means any exploitation (or series of related, repeated or continuing exploitations) of any vulnerability or vulnerabilities in any **operating system**, including but not limited to any ransomware, wiper malware, computers worms and computer viruses.

Other designated event means any other designated event shown in the Schedule above.

Unrelated entity means any organization that is not:
1. An insured under this policy; or
2. A **service provider**.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMEND EXCLUSION S – CRITICAL INFRASTRUCTURE EXCLUSION

This endorsement modifies insurance provided under the following:

INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE

Endorsement Number: 4
Endorsement Effective Date: 12/21/2025

A. The following replaces Paragraph **S**. **Power, Communications, Data Transmission Systems or Services Interruption** of **SECTION II – EXCLUSIONS**:

This insurance does not apply to:

S. Critical Infrastructure
Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving any actual or alleged interruption, disturbance, corruption, impairment, outage, surge, brownout, blackout, malfunction, defect or failure of any **critical infrastructure**.

This exclusion does not apply if such **critical infrastructure** was exclusively and entirely under the direct operational control of an insured at the time of such interruption, disturbance, corruption, impairment, outage, surge, brownout, blackout, malfunction, defect or failure.

B. The following definition is added to **SECTION VII – DEFINITIONS**:

Critical infrastructure means any of the following:
1. Power, gas, fuel, energy, water or other utilities;
2. Satellite systems or services;
3. Telephone, telecommunications, fiber optics, wireless communications or other communications systems or services;
4. The Internet's Domain Name System (DNS), Border Gateway Protocol (BGP), certificate authorities or root certificates;
5. Financial transaction or payment processing platforms (including but not limited to any securities exchange); or
6. Any infrastructure, facilities, lines or equipment used for, or by, any of the above.

C. The following replaces Paragraph **2.** in Paragraph **XX. Service provider** of **SECTION VII – DEFINITIONS**:

2. Does not include any person or entity that provides any **critical infrastructure**, regardless of whether they are otherwise listed in the schedule of any other endorsement that may be attached to your policy, including but not limited to OBTI PR 250 *Net Business Income and Extra Expense Coverage – Security Failure – Contingent Services Provider Extension* or endorsement OBTI PR 319 *Net Business Income and Extra Expense Coverage – Security Failures and Outages – Contingent Services Provider Extension*.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMEND INSURED VERSUS INSURED EXCLUSION – EXCEPTION FOR ADDITIONAL INSURED CLAIMS AGAINST NAMED INSURED

This endorsement modifies insurance provided under the following:

INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE

Endorsement Number: 5
Endorsement Effective Date: 12/21/2025

The following is added to Paragraph **N. Insured Versus Insured** of **SECTION II – EXCLUSIONS**:

This exclusion does not apply to a covered **claim** made against you by an additional insured qualifying as such under Paragraph **B.3.** of **SECTION III – WHO IS AN INSURED** or under an additional insured endorsement.

This exclusion does not apply to a covered **claim** for a covered **information risk incident** involving the **personally identifiable information** of an independent contractor qualifying as an insured under Paragraph **B.2.** of Section III – WHO IS AN INSURED, an independent contractor who formerly qualified as such an insured, or any member of such a current or former insured independent contractor's immediate family.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMEND DEFINITION OF DAMAGES

This endorsement modifies insurance provided under the following:

INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE

Endorsement Number: 6
Endorsement Effective Date: 12/21/2025

The following is added to Paragraph **2.** in Paragraph **L. Damages** of **SECTION VII – DEFINITIONS**:

Damages also does not include any loss, cost, or expense incurred by or on behalf of any insured or others to provide, complete, correct, repair, replace, reproduce, reprint, restore, upgrade, supplement or otherwise improve **your product**, **your services** or **impaired property.**

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMEND CONDITIONS G AND H – GLOBAL DUTY TO DEFEND

This endorsement modifies insurance provided under the following:

INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE

Endorsement Number: 7
Endorsement Effective Date: 12/21/2025

A. The following replaces Paragraph **1.** in **G. Coverage Territory** of **SECTION VIII – CONDITIONS**:

1. This policy applies to an **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation** that takes place anywhere other than a country subject to U.S. economic or trade sanctions.

B. The following replaces Paragraph **H. Defense and Settlement** of **SECTION VIII – CONDITIONS**:

H. Defense and Settlement

We have the right and duty to defend any **claim** seeking those **damages**, or any **privacy regulatory proceeding** seeking those **privacy regulatory fines** or **consumer redress funds,** to which this insurance applies. If we would have the duty to defend a **claim** or **privacy regulatory proceeding** brought outside the United States or its territories or possessions, but the jurisdiction does not allow for a defense to be provided by us, then we will instead indemnify you for covered **damages**, **privacy regulatory fines** and **defense expenses**. We have the right, but not the duty, to defend any **claim** or **privacy regulatory proceeding** seeking **non-monetary relief**. We may, at our discretion, investigate any **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation** and settle any resulting **claim** or **privacy regulatory proceeding**. But:

1. The amount we will pay for **damages**, **privacy regulatory fines**, **consumer redress funds** and **defense expenses** is limited as described in **SECTION IV – LIMITS OF INSURANCE**; and

2. Our right and duty to defend ends when we have used up:

a. The applicable Limit of Insurance in the payment of **damages** or **defense expenses** under Liability Coverages **1**, **2** or **3**; or

b. The applicable Limit of Insurance in the payment of **privacy regulatory fines**, **consumer redress funds** or **defense expenses** under Liability Coverage **4**.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMEND WAR, STATE-SPONSORED ACTIVITY EXCLUSION – HOSTILE CYBER ACTIVITY (IMPACTED STATE)

This endorsement modifies insurance provided under the following:

INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE

Endorsement Number: 8
Endorsement Effective Date: 12/21/2025

A. The following replaces Paragraph **AA**. **War, State-Sponsored Activity** of **SECTION II – EXCLUSIONS**:

This insurance does not apply to:

War, Hostile Cyber Activity
Any **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** arising out of or in any way involving:
1. **War**;
2. **Hostile cyber activity** conducted as part of a **war**; or
3. **Hostile cyber activity** that results in an **impacted state**.

Paragraph **3.** of this exclusion does not apply to any otherwise covered **claim**, **privacy regulatory proceeding**, **damages**, **defense expenses**, **privacy regulatory fines**, **consumer redress funds** or **first-party loss** that arises out of **hostile cyber activity** affecting:
(i) The **insured's network**; or
(ii) **Your network**;
that is not physically located in an **impacted state**.

B. The following are added to **SECTION VII – DEFINITIONS**:

Hostile cyber activity means the use of any computers, any software residing on such computers, and any associated devices or equipment by, at the direction of or under the control of a sovereign state to:
1. disrupt, deny access to, or degrade functionality of; or
2. copy, remove, manipulate, deny access to or destroy information in;
any computers, any software residing on such computers, and any associated devices or equipment.

Impacted state means a sovereign state in which the availability, delivery or integrity of **state services** have been severely impacted by another sovereign state's **hostile cyber activity**, resulting in:
1. A significant loss of life or casualties; or
2. A disruption to the functioning of that sovereign state's national:
  a. Economy
  b. Health care system; or
  c. Security or defense system(s).

State services means services that are essential for the maintenance of vital functions of a sovereign state, including but not limited to: financial institutions and associated financial market infrastructure; emergency services; health services; utility services; and services that are essential for the maintenance of the food, energy, and/or transportation sector.

War means the use of physical force by a sovereign state against another sovereign state (whether war be declared or not) or as part of a civil war, rebellion, revolution, insurrection and/or military action or usurpation of power.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

VIRGINIA CHANGES

This endorsement modifies insurance provided under the following:

INFORMATION TECHNOLOGY SOLUTIONS™ – COMPLETE

A. The following replaces the sentence in Paragraph **B.** of **SECTION IV – LIMITS OF INSURANCE** that states, "We will have no further obligations under this policy once the Maximum Policy Aggregate Limit is exhausted.":

Except with respect to our obligations in connection with offering an Extended Reporting Period in compliance with Virginia regulations applicable to claims-made policies, we will have no further obligations under this policy once the Maximum Policy Aggregate Limit is exhausted.

B. The following replaces **SECTION VI – EXTENDED REPORTING PERIOD**:

A. We will provide one or more Extended Reporting Periods, as described below, if:
- **1.** There is a **termination of coverage**; or
- **2.** We renew or replace this policy with insurance that:
  - **a.** Has a Retroactive Date later than the date shown in the Declarations of this policy; or
  - **b.** Does not apply to **error or omission**, **information risk incident**, **communication incident** or violation of a **privacy regulation** on a claims-made basis.

B. Extended Reporting Periods do not apply to First-Party Coverage, extend the policy shown in the Declarations or change the scope of the original terms of the policy coverage provided. They only apply to **claims** made or **privacy regulatory proceedings** brought during the Extended Reporting Period for **errors or omissions**, **information risk incidents**, **communication incidents** or violations of a **privacy regulation** committed prior to the **termination of coverage** and after the Retroactive Date shown in the Declarations. Once in effect, an Extended Reporting Period may not be cancelled by the insurer.

The Basic Extended Reporting Period does not increase or reinstate the Limits of Insurance.

C. A Basic Extended Reporting Period is automatically provided without additional charge. This period starts with the **termination of coverage** and lasts for 60 days after the **termination of coverage**. The Basic Extended Reporting Period does not apply to any **claim** or **privacy regulatory proceeding** covered under any subsequent insurance you purchase, or that would be covered but for exhaustion of the amount of insurance applicable to such **claim** or **privacy regulatory proceeding**.

1. A Supplemental Extended Reporting Period is available but only by endorsement and for an extra charge. You must give us a written request for such endorsement within 60 days after the **termination of coverage**. The Supplemental Extended Reporting Period will not go into effect unless you pay the additional premium promptly when due. The First Named Insured may purchase a Supplemental Extended Reporting Period and the additional premium for such Supplemental Extended Reporting Period without reinstated Limits of Insurance will not exceed 200% of the annual premium of the policy. The periods of time will include the option to purchase a two year Supplemental Extended Reporting Period.

C. The following is added to **SECTION VII – DEFINITIONS**:

Termination of coverage means:
1. Cancellation (other than for fraud or non-payment or premium) or nonrenewal of this policy ; or
2. A decrease in limits, reduction in coverage, increased deductible or self-insured retention, new exclusion or any other change in coverage less favorable to the insured;

whether made by the insurer or the insured at any time.

D. The following replaces Paragraph **2**. in Paragraph **D. Cancellation** of **SECTION VIII – CONDITIONS**:

2. We may cancel this policy by mailing by certified or registered mail, written notice to the First Named Insured at the address shown in Item I. of the Declarations, stating the reason for and effective date of cancellation:
a. 15 days before the effective date of cancellation for non-payment of premium; or
b. 60 days before the effective date of cancellation for any other reason.

If we have received no premium after 15 days' notice to the First Named Insured, we will cancel this policy as of the Effective Date shown in the Declarations.

Our obligation to provide notice of cancellation to the First Named Insured does not cease if this policy's Limits of Insurance are exhausted.

E. The following replaces Paragraph **3.** in Paragraph **D. Cancellation** of **SECTION VIII – CONDITIONS**:

3. We will send any premium refund due at cancellation. If we cancel this policy, the refund will be pro rata. If the First Named Insured cancels, the earned premium will be computed at 90% of pro rata. Cancellation will be effective even if we have not made or offered a refund.

F. The following is added to Paragraph **M. Legal Action Against Us** of **SECTION VIII – CONDITIONS**:

If execution of a judgment against an insured is returned unsatisfied in an action brought to recover **damages** incurred during the Policy Period, the person or organization obtaining such execution may bring an action against us to the extent such **damages** are covered under this policy, but we will not be liability for any **damages** or loss that are not covered or payable under the terms of this policy or that are in excess of the applicable Limits of Insurance of this policy.

G. The following replaces Paragraph **X. When We Do Not Renew** of **SECTION VIII – CONDITIONS**:

We are not required to renew this policy upon expiration. If we decide not to renew this policy, we will mail by registered or certified mail to the First Named Insured shown in the Declarations written notice of the nonrenewal not less than 60 days before the expiration date. Such notice will state the reason for nonrenewal.

Our obligation to provide notice of nonrenewal to the First Named Insured does not cease if this policy's Limits of Insurance are exhausted.